LOCAL RULES

OF THE

UNITED STATES

BANKRUPTCY COURT

FOR THE

DISTRICT OF KANSAS

Dale L. Somers
Chief Judge

Robert D. Berger
Judge

Mitchell L. Herren
Judge

EFFECTIVE December 1, 2024

THE HONORABLE DALE L. SOMERS
CHIEF JUDGE
United States Bankruptcy Judge
225 U.S. Courthouse
444 Southeast Quincy Street
Topeka, Kansas 66683

THE HONORABLE ROBERT D. BERGER
United States Bankruptcy Judge
125 Robert J. Dole U.S. Courthouse
500 State Avenue
Kansas City, Kansas 66101

THE HONORABLE MITCHELL L. HERREN
United States Bankruptcy Judge
104 U.S. Courthouse
401 North Market
Wichita, Kansas 66202

* * * * * * * * * *

BANKRUPTCY CLERK
David D. Zimmerman

Wichita Clerk's Office
167 U.S. Courthouse
401 North Market
Wichita, Kansas 67202

Kansas City Clerk's Office
161 Robert J. Dole U.S. Courthouse
500 State Avenue
Kansas City, Kansas 66101

Topeka Clerk's Office
240 U.S. Courthouse
444 Southeast Quincy Street
Topeka, Kansas 66683

Please see www.ksb.uscourts.gov for
current telephone contact information

LOCAL BANKRUPTCY RULES TABLE OF CONTENTS

Bankruptcy Judges 2
Order of Adoption 7
Memorandum and Order 8
Preface 9

SCOPE OF RULES

1001.1 Scope and Modification of Rules; Citation 14

COMMENCEMENT OF CASE

1004.1 Partnership and Corporate Petitions 14
1005.2 Captions; Case Numbering System 14
1006.1 Filing Fees 14
1007.1 Initial Filings 15
1007.2 Preparation and Filing of Matrix 18
1009.1 Amendments to Lists and Schedules of Creditors and Applicable Deadlines 18
1020.1 Chapter 11 Reorganization Case for Small Business Debtors or Debtors Under Subchapter V 19
1072.1 Court Locations 20
1073.1 Assignment of Cases 20

ADMINISTRATION, NOTICING, AND PROFESSIONALS

2002.1 Notice to Creditors and Other Interested Parties 20
2002.2 Scheduling, Listing and Noticing the United States and Agencies of the State of Kansas as a Creditor 21
2002.3 Notices to Creditors 25
2004.1 Examinations 26
2014.1 Application for Employment of Professionals 26
2016.1 Monthly Compensation of Professionals 27
2090.1 Attorneys - Admission to Practice 27
2090.2 Professional Conduct 28

CLAIMS, DISTRIBUTION, AND PLANS

3001.1 Claims 28
3002.1.1 Required Statements for Secured Debts on a Personal Residence 28
3002.2 Extension for Governmental Unit to File Proof of Claim 31
3003.1 Automatic Claims Bar Date in Chapter 11, Subchapter V, Cases When Filed 31
3010.1 Small Dividends in Chapter 13 Cases 31
3015(b).1 Chapter 13 Plan and Pre-Confirmation Adequate Protection Payments 31

3015(b).2 Conduit Mortgage Payments in Chapter 13 Cases 33
3015(h).1 Chapter 13 Trustee's Modification of Plan After Confirmation 36
3022.1 Final Decree in Non-Individual Chapter 11 Reorganization Cases 36

DEBTOR DUTIES AND BENEFITS

4001(a).1 Stay Relief 37
4001(a).3 Automatic Stay - Extension or Imposition 38
4002.1 Trustee Requests for Evidence of Income, Including Tax Returns 40
4002.2 Trustee Requests for Information from Debtors 41
4002.3 Tax Returns 41
4004.1 Discharge in Cases Under Chapter 11 Subchapter V, Chapter 12, and Chapter 13 41
4070.1 Insurance on Motor Vehicles 42

COURTS AND CLERKS

5003.1 Access to Court Records 43
5003.2 Court Records 44
5005.1 Filing by Electronic Means 44
5072.1 Courtroom Practices 49
5075.1 Orders by Bankruptcy Clerk; Review 49

COLLECTION AND LIQUIDATION

6004.1 Persons Prohibited from Purchasing at Sales 49
6007.1 Abandonment of Property of the Chapter 7 Estate 50

ADVERSARY PROCEEDINGS

7003.1 Commencement of Adversary Proceeding 50
7004.1 Service of Summons and Complaint on the United States or the State of Kansas 50
7012.1 Motions to Dismiss 51
7026.1 Discovery 51
7041.1 Dismissal of Bankruptcy Code § 727 Complaints Objecting to Discharge 53
7054.1 Taxation and Payment of Costs 53
7056.1 Motions for Summary Judgment 53
7065.1 Restraining Orders and Temporary Injunctions in Adversary Actions 54

APPEALS

8010.1 Transmitting the Record for a Preliminary Motion 55
8021.1 Taxation and Payment of Costs after Appeal 55

GENERAL PROVISIONS

9004.1	Form of Pleadings and Documents	55
9006.1	Bridge Orders	57
9010.1	Appearance by Corporations, Partnerships and Entities Other Than Individuals	57
9011.3	Sanctions	57
9011.4	Signatures	58
9013.1	Briefs and Memoranda	59
9013.2	Non-Dispositive Motions Practice	59
9013.3	Proof of Service	60
9019.2	Alternative Dispute Resolution	60
9027.1	Removal/Remands	62
9029.1	Amendment of Rules	62
9029.2	Standing Orders	62
9029.3	Bankruptcy Bench Bar Committee	63
9036.1	Debtor Electronic Bankruptcy Notification	63
9037.1	Redaction	64
9072.1	Exhibits	65
9074.1	Journal Entries and Orders	66

STANDING ORDERS

11-1	Order Authorizing Chapter 7 Trustees to Pay Bank Service Charges and Fees Incurred by Chapter 7 Estate Accounts	68
14-1	Order Rendering D. Kan. Rule 83.5.8 Limited Scope Representation Inapplicable to Bankruptcy Court	69
16-1	Order Governing Deposit and Investment of Registry Funds	70
22-2	Order Abrogating Interim Rules Responsive to the Small Business Reorganization Act of 2019 and the Coronavirus Aid, Relief and Economic Security Act	73
24-2	Order Governing Case Management of Chapter 7 and Chapter 13 Cases	75

OFFICIAL LOCAL FORMS AND RELATED LOCAL RULES

Declaration Regarding Payment Advices or Evidence of Payment Under 11 U.S.C. § 521(a)(1)(B)(iv), Related to LBR 1007.1 77
Notice of Amendment of Schedules D, E/F, G or H (Addition of Creditor(s)), Related to LBR 1009.1 78
Notice of Rule 2004 Examination, Related to LBR 2004.1 79
Subpoena for Rule 2004 Examination (Director's Form B 2540), Related to LBR 2004.1 80
Mortgage Creditor Checklist, Related to LBR 3015(b).2 83
Authorization to Release Information to the Trustee Regarding Secured Claims Being Paid by the Trustee, Related to LBR 3015(b).2 84
Addendum to Chapter 13 Proof of Claim for Residential Home Mortgage Debt Paid Through Chapter 13 Trustee, Related to LBR 3015(b).2 85
Notice of Transfer of Servicing and Claim, Related to LBR 3015(b).2 87
Notice of Transfer of Claim (Other than for Security), Related to LBR 3015(b).2 88
Chapter 13 Plan (as amended 4/1/24) 90

For additional local forms, see the court's website at https://www.ksb.uscourts.gov/forms.

UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS

ORDER OF ADOPTION

Pursuant to the authority vested in this court by rule and statute, and following notice and a public comment period:

IT IS ORDERED that the attached Local Rules of the United States Bankruptcy Court for the District of Kansas are adopted, supersede existing rules bearing the same number where applicable, and become effective December 1, 2024. Specifically, the court amends LBR 1007.1, LBR 2002.1, LBR 3001.1, LBR 3015(b).1, LBR 3015(b).2, LBR 5003.1, LBR 5003.2, LBR 5005.1 and its appendix, LBR 7026.1, LBR 9004.1(c), LBR 9011.4, LBR 9013.3(a), LBR 9036.1, LBR 9037.1.

IT IS FURTHER ORDERED that superseded rules and the superseded form are repealed effective December 1, 2024.

IT IS FURTHER ORDERED that the attached Standing Orders of the court are adopted and become effective December 1, 2024, and supersede the court's previous Standing Orders which are repealed effective December 1, 2024. Specifically, the court notes that Standing Order 21-1 and Standing Order 24-1 are abrogated.

IT IS SO ORDERED.

Dated this 21st day of November, 2024.

s/ Dale L. Somers
DALE L. SOMERS
Chief Judge

s/ Robert D. Berger
ROBERT D. BERGER
Judge

s/ Mitchell L. Herren
MITCHELL L. HERREN
Judge

ATTEST:
s/ David D. Zimmerman
DAVID D. ZIMMERMAN, Clerk

UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS
IN THE MATTER OF RULES OF PRACTICE
AND PROCEDURE IN THIS COURT
MEMORANDUM AND ORDER

By means of this Memorandum and Order, the Judges of this court express their appreciation to the members of the Bankruptcy Bench Bar Committee.

The individuals composing the Committee devoted much time to studying the operating procedures of the court, serving as liaisons between the court and its bar and the public, recommending revisions to the Local Rules of the United States Bankruptcy Court for the District of Kansas, and providing reports and other recommendations as the court directed. The Committee members performed their tasks competently, unselfishly, and in the best tradition of the legal profession.

IT IS THEREFORE ORDERED that the Clerk file this Memorandum and Order as a permanent record of the court and that he deliver an attested copy to each member of the Committee, namely:

J. Christopher Allman, Chair
Christopher Redmond
January M. Bailey
Ryan A. Blay
Sharon Stolte
Jordan Sickman
William H. Griffin
Jill A. Michaux
Daydree Dopps
Hunter Gould

IT IS SO ORDERED.

Dated this 21st day of November, 2024.

s/ Dale L. Somers
DALE L. SOMERS
Chief Judge

s/ Robert D. Berger
ROBERT D. BERGER
Judge

s/ Mitchell L. Herren
MITCHELL L. HERREN
Judge

ATTEST:
s/ David D. Zimmerman
DAVID D. ZIMMERMAN, Clerk

PREFACE
(As amended 12/1/2024)

Attorneys unfamiliar with Kansas bankruptcy practice may find some helpful information in this preface to the *Local Rules of the United States Bankruptcy Court for the District of Kansas*.

1. Background

The Bankruptcy Code consists of amendments to the Bankruptcy Reform Act of 1978, Pub. L. No. 95-598, Title I, § 101, 92 Stat. 2549, enacted into law November 6, 1978, effective October 1, 1979. Since its enactment, Congress has amended this law many times, most significantly with the Bankruptcy Abuse Prevention and Consumer Protection Act of 2005, Pub. L. No. 109-8, § 106, 119 Stat. 23.

In 1982, the Supreme Court declared the jurisdictional support for the 1978 Act unconstitutional in *Northern Pipeline Const. Co. v. Marathon Pipe Line Co.*, 458 U.S. 50 (1982). It did so because 28 U.S.C. § 1471(c) of the 1978 Act invested non-Article III bankruptcy courts with powers exercisable only by Article III courts.

After *Marathon*, the bankruptcy system operated under an Emergency Rule promulgated by the Judicial Conference of the United States until 1984, when Congress enacted corrective legislation in the form of 28 U.S.C. § 1334, which currently states:

> (a) Except as provided in subsection (b) of this section, the district courts shall have original and exclusive jurisdiction of all cases under title 11.
> (b) Except as provided in subsection(e)(2) [dealing with claims that involve construction of the statute governing employment of professionals in a bankruptcy case], and notwithstanding any Act of Congress that confers exclusive jurisdiction on a court or courts other than the district courts, the district courts shall have original but not exclusive jurisdiction of all civil proceedings arising under title 11, or arising in or related to cases under title 11.

Hoping to cure the constitutional infirmity, Congress also declared that bankruptcy judges would "constitute a unit of the district court to be known as the bankruptcy court for that district." 28 U.S.C. § 151.

To transfer the bankruptcy power to the bankruptcy courts, the 1984 amendments provided, through 28 U.S.C. § 157(a) that, "[e]ach district court may provide that any or all cases under title 11 and any or all proceedings arising under title 11 or arising in or related to a case under title 11 shall be referred to the bankruptcy judges for the district."

In Kansas, 28 U.S.C. § 157(a) was implemented by a Standing Order dated August 1, 1984 (effective July 10, 1984), stating:

> STANDING ORDER
> Pursuant to Sec. 104 of the Bankruptcy Amendments and Federal Judgeship Act of 1984, 28 U.S.C. Sec. 157, this court refers all cases under Title 11, and any and all proceedings arising under Title 11, or arising in or related to a case under Title 11, to the bankruptcy

judges for the District of Kansas, for consideration and resolution consistent with the law. The court recognizes the exception contained in Sec. 157(b)(5).

IT IS HEREBY ORDERED that the Bankruptcy judges for the District of Kansas be and they hereby are directed to exercise the authority and responsibilities conferred upon them by the Bankruptcy Amendments and Federal Judgeship Act of 1984.

IT IS FURTHER ORDERED, effective as of July 10, 1984, that any and all cases under Title 11, and any and all proceedings arising under Title 11, be and hereby are referred to the bankruptcy judges of the District of Kansas for consideration and resolution consistent with the law.

Dated this 1st day of August, 1984.

In 2011, the landscape of bankruptcy court jurisdiction was again considered by the Supreme Court in *Stern v. Marshall*, 131 S. Ct. 2594 (2011). In *Stern*, the Supreme Court reasoned that, although 28 U.S.C. § 157(a) authorizes bankruptcy judges to adjudicate cases that arise under, arise in, or are related to a case under Title 11, Article III of the U.S. Constitution requires final judgments in some types of matters to be issued by an Article III district court judge who has life tenure and salary protection.[1]

Specifically, the Court concluded that a counterclaim for tortious interference with a gift asserted by a debtor against a creditor must be resolved by a judge appointed under Article III, and that the "public rights" exception that allows some types of claims to be adjudicated in non-Article III forums did not bring the counter-claim within the bankruptcy court's permissible jurisdiction because the counterclaim did not stem from the bankruptcy itself and would not necessarily be resolved in the course of the claims allowance process of bankruptcy.

On June 24, 2013, to address the Supreme Court's holding in *Stern*, the United States District Court for the District of Kansas issued an amended standing order of reference, which states:

Standing Order No. 13-1

Pursuant to 28 U.S.C. § 157(a), any or all cases under title 11 and any or all proceedings arising under title 11 or arising in or related to a case under title 11 are referred to the bankruptcy judges for this district.

If a bankruptcy judge or district judge determines that entry of a final order or judgment by a bankruptcy judge would not be consistent with Article III of the United States Constitution in a particular proceeding referred under this Rule, the bankruptcy judge shall, unless otherwise ordered by the district court, hear the proceeding and submit proposed findings of fact and conclusions of law to the district court. The district court may treat any order of the bankruptcy court as proposed findings of fact and conclusions

[1] The Supreme Court later concluded, in *Wellness International Network, Ltd. v. Sharif*, 575 U.S. 665, 686 (2015), that "Article III permits bankruptcy courts to decide *Stern* claims submitted to them by consent."

of law in the event the district court concludes that the bankruptcy judge could not have entered a final order or judgment consistent with Article III of the Constitution.

IT IS SO ORDERED.
Dated this 24th day of June, 2013.

District Court Standing Order 13-1 was incorporated into D. Kan. Rule 83.8.5(c) on March 17, 2014, and related updates were contemporaneously made to Rules 83.8.6 through 83.8.9. As a result, in a bankruptcy case where final judgment in a particular matter must be entered by a district court judge, D. Kan. Rule 83.8.5(c) provides that a bankruptcy judge may hear the matter and issue proposed findings of fact and conclusions of law for the district court to review and enter a final order or judgment. In a case where the bankruptcy court issues a decision in the form of an order but the U.S. Constitution requires final judgment to be entered by the district court, D. Kan. Rule 83.8.5(c) resolves the issue by stating that the bankruptcy court order will be construed as proposed findings of fact and conclusions of law for the district court to review and enter a final order or judgment. This approach was approved by the Supreme Court in *Executive Benefits Insurance Agency v. Arkison (In re Bellingham Insurance Agency, Inc.)*, 573 U.S. 25 (2014). It was then codified by the addition of Fed. R. Bankr. P. 8018.1 (Dec. 1, 2018.)

2. Hierarchy of Rules.

The following hierarchy of rules underlie and aid the application of the Bankruptcy Code:

The Federal Rules of Civil Procedure
The Federal Rules of Evidence
The Federal Rules of Bankruptcy Procedure
The Rules of Practice and Procedure of the United States District Court for the District of Kansas
Local Rules of the United States Bankruptcy Court for the District of Kansas and Official Local Bankruptcy Forms
Bankruptcy Court Standing Orders
Procedural Guidelines of Individual Bankruptcy Judges

The Federal Rules of Civil Procedure apply in bankruptcy adversary proceedings through Part VII of the Federal Rules of Bankruptcy Procedure, and in contested matters through Part IX of the Federal Rules of Bankruptcy Procedure.

Rule 101 of the Federal Rules of Evidence applies those rules to "proceedings in United States courts," and Rule 1101 of the Federal Rules of Evidence specifically applies the rules to proceedings before United States bankruptcy judges and all "civil cases and proceedings, including bankruptcy."

Next in the hierarchy are the Federal Rules of Bankruptcy Procedure. They find their source in 28 U.S.C. § 2075, which provides, in pertinent part:

> The Supreme Court shall have the power to prescribe by general rules, the forms of process, writs, pleadings, and motions, and the practice and procedure in cases under title 11.

Such rules shall not abridge, enlarge, or modify any substantive right.

Next are the local rules of the courts of this district. Rule 83(a)(1) of the Federal Rules of Civil Procedure permits district courts to enact local rules:

> After giving public notice and an opportunity for comment, a district court, acting by a majority of its district judges, may adopt and amend rules governing its practice. A local rule shall be consistent with--but not duplicate--federal statutes and rules adopted under 28 U.S.C. §§ 2072 and 2075, and must conform to any uniform numbering system prescribed by the Judicial Conference of the United States. A local rule takes effect on the date specified by the district court and remains in effect unless amended by the court or abrogated by the judicial council of the circuit. Copies of rules and amendments must, on their adoption, be furnished to the judicial council and the Administrative Office of the United States Courts and be made available to the public.

(Emphasis added).

Accordingly, in Kansas the district court has enacted The Rules of Practice and Procedure of the United States District Court for the District of Kansas to assist litigants.

Rule 9029(a)(1) of the Federal Rules of Bankruptcy Procedure authorizes the district court to adopt local rules relating to bankruptcy:

> (1) ***By District Courts.*** Each district court, acting by a majority of its judges, may make and amend rules governing practice and procedure in all cases and proceedings within its bankruptcy jurisdiction. Fed. R. Civ. P. 83 governs the procedure for adopting local rules. The rules must:
> (A) be consistent with—but not duplicate—federal statutes and these rules;
> (B) not prohibit or limit using Official Forms;[2] and
> (C) conform to any uniform numbering system prescribed by the Judicial Conference of the United States.
> (2) ***Delegating Authority to the Bankruptcy Judges.*** A district court may—subject to any limitation or condition it may prescribe and Fed. R. Civ. P. 83—authorize the district's bankruptcy judges to do the same.

To effectuate Federal Rule of Bankruptcy Procedure 9029, Rule 83.8.12 of the Rules of Practice and Procedure of the United States District Court provides: "The Bankruptcy Court may adopt supplemental Local Rules not inconsistent with these District Court Rules, the Bankruptcy Rules, or Title 11 or Title 28 of the United States Code."

The Local Rules of the United States Bankruptcy Court for the District of Kansas flow from the outlined authorities and the efforts of the Bankruptcy Bench Bar Committee, which

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[2] Rule 9009 of the Federal Rules of Bankruptcy Procedure governs the promulgation of Official Bankruptcy Forms. ("The Official Forms prescribed by the Judicial Conference of the United States must be used without alteration—unless alteration is authorized by these rules, the form itself, or the national instructions for a particular official form.")

periodically reviews and recommends revisions to the bankruptcy rules. Bankruptcy Court Standing Orders primarily supplement the rules on administrative issues. Many official local bankruptcy forms, such as the Chapter 13 Plan form, were previously appended to specific local rules or Standing Orders. In 2022, those forms were moved to a consolidated forms section within the local rules. The court has also created other forms that are authorized by the local rules (*see, e.g.,* LBR 1007.1 and LBR 9036.1). All of the local forms are available on the court's website.

Procedural Guidelines of Individual Bankruptcy Judges are also published to aid attorneys on procedural matters when practicing before a particular judge. Attorneys may obtain the guidelines of a particular judge from the Deputy Clerk where the judge presides.

The Rules, Standing Orders, and Procedural Guidelines can also be electronically accessed through the court's website, www.ksb.uscourts.gov, and through PACER.

3. Applicability of District Court Local Rules

The bankruptcy court is a unit of the district court and these rules merely supplement the district court rules. This means attorneys in bankruptcy proceedings must follow the district court rules relating to bankruptcy (D. Kan. Rules 83.8.1 through 83.8.13) and, where applicable, the other district court rules. District of Kansas Rules 83.8.1 through 83.8.13 are devoted to bankruptcy topics on withdrawal of reference, removal, abstention, jury trial, and appeal of bankruptcy cases from the Bankruptcy Court to the 10th Circuit Bankruptcy Appellate Panel or the United States District Court.

Finally, attorneys who are not admitted to practice before the federal courts in Kansas must carefully note and follow District of Kansas Rules 83.5.1 through 83.6.12 on the responsibility, registration, appearance, and withdrawal of counsel.

LBR 1001.1
SCOPE AND MODIFICATION OF RULES; CITATION

(a) Authority. These supplemental rules are promulgated under the authority of Fed. R. Bankr. P. 9029 and D. Kan. Rule 83.8.12. Practice before this court is governed by applicable D. Kan. Rules, unless there is a more specific Fed. R. Bankr. P. or D. Kan. LBR. *See* D. Kan. Rule 83.8.2.

(b) Citation. These rules should be cited as D. Kan. LBR 1001.1, *et seq*. All statutory references are to the Bankruptcy Code, 11 U.S.C. § 101, *et seq*., unless otherwise specified.

(c) Modification. In special cases, the court may modify these rules as necessary or appropriate.

(d) Revision information. Effective with the rule revisions in March 2005, any rule that is substantively revised will indicate its last revision date.

(e) Effective Date. All rules are effective for all cases, whenever filed, unless otherwise stated.

* * *

As amended 3/17/10, 3/17/09, 10/17/05, 3/17/05.

LBR 1004.1
PARTNERSHIP AND CORPORATE PETITIONS

No party may combine the petition of a partnership or corporation with the petition of any individual or other entity.

* * *

As amended 3/17/10.

LBR 1005.2
CAPTIONS; CASE NUMBERING SYSTEM

(a) Captions. In addition to meeting the requirements of Fed. R. Bankr. P. 1005 and Official Form 416A or 416B, as applicable, the caption of each petition must state the full and correct name of the debtor.

(b) Case Numbering System. The clerk assigns each case a number, which begins with a two-digit indicator of the year in which the case was filed, followed by a hyphen and the five-digit individualized case number. The five-digit individualized case numbers are as follows:

- Kansas City cases begin with "2", e.g., 24-20001;
- Topeka cases begin with "4", e.g., 24-40001; and
- Wichita cases begin with "1", e.g., 24-10001.

* * *

As amended 3/17/16, 3/17/09, 3/17/05.

LBR 1006.1
FILING FEES

The court may permit payment of filing fees in installments as provided by Fed. R. Bankr. P. 1006. The court may also waive filing fees in Chapter 7 cases, as provided in Fed. R. Bankr. P. 1006. The clerk will not accept checks issued by a debtor for filing fees.

* * *

As amended 3/17/09, 10/17/05.

LBR 1007.1
INITIAL FILINGS

(a) Assembly of Petition and Accompanying Documents. Petitions and accompanying documents not filed electronically (e.g., by unrepresented debtors) must conform to the Official Bankruptcy Forms and must be printed on only one side of the paper. Original documents and pleadings filed with the court may not be stapled.

(1) Parties must assemble petitions and accompanying documents, if applicable, in the following order:

	Name of Document	Official Form for Individual (Non-Individual)
(A)	Petition	101 (201)
(B)	List of Creditors with the 20 Largest Unsecured Claims Who Are Not Insiders (only in Chapter 11)	104 (204)
(C)	Schedules	
(i)	Schedule A/B: Property	106A/B (206A/B)
(ii)	Schedule C: Exempt Property	106C
(iii)	Schedule D: Secured Claims	106D (206D)
(iv)	Schedule E/F: Unsecured Claims	106E/F (206E/F)
(v)	Schedule G: Executory Contracts and Unexpired Leases	106G (206G)
(vi)	Schedule H: Codebtors	106H (206H)
(vii)	Schedule I: Income	106I
(viii)	Schedules J and J-2: Expenses	106J, 106J-2
(D)	Summary of Assets and Liabilities and Certain Statistical Information or Summary of Assets and Liabilities for Non-Individuals	106Sum (206Sum)
(E)	Declaration About an Individual Debtor's Schedules or Declaration Under Penalty of Perjury For Non-Individual Debtors	106Dec (202)
(F)	Statement of Financial Affairs	107 (207)
(G)	Statement of Intention for Individuals Filing Under Chapter 7	108
(H)	Bankruptcy Petition Preparer's Notice, Declaration, and Signature	119
(I)	Means Test Calculation	
(i)	Chapter 7 Statement of Current Monthly Income	122A-1

(ii)	Statement of Exemption From Presumption of Abuse	122A-1 Supp
(iii)	Chapter 7 Means Test Calculation	122A-2
(iv)	Chapter 11 Statement of Current Monthly Income	122B
(v)	Chapter 13 Statement of Current Monthly Income and Calculation of Commitment Period	122C-1
(vi)	Chapter 13 Calculation of Disposable Income	122C-2
(J)	Rule 2016(b) Disclosure of Compensation of Attorney for Debtor	B2030
(K)	For a small business case filed under Chapter 11, the most recent: Balance Sheet, Statement of Operations, Cash-Flow Statement, and Federal Income Tax Return; or a statement made under penalty of perjury that no balance sheet, statement of operations, or cash-flow statement has been prepared and no Federal tax return has been filed	
(L)	Matrix and Matrix Verification	

(2) The following documents, if applicable, must **not** be attached to the petition and must be filed separately:

	Name of Document	Official Form
(A)	Application for Individuals to Pay the Filing Fee in Installments	103A
(B)	Application to Have the Chapter 7 Filing Fee Waived	103B
(C)	The Plan (if submitted when petition is filed in Chapters 11, 12, and 13)	*See* Forms page of court website for the Official Chapter 13 Plan Form.
(D)	When Debtor(s) are represented by counsel: Declaration Re: Electronic Filing (required in lieu of Official Form 121). This document must be electronically filed as a sealed document pursuant to the instructions on the form. When Debtors are self-represented: Statement About Social Security Number.	*See* Forms page of court website. 121
(E)	Declaration Regarding Payment Advices or Evidence of Payment under 11 U.S.C.	*See* Forms page of court website.

	§521(a)(1)(B)(iv), in compliance with Appendix 1-01 to D. Kan. LBR 1007.1, that the debtor has not been employed by any employer within the 60 days before filing of the petition, or that the debtor was employed within the 60 days, but has not received payment advices or other evidence of payment, or that copies of payment advices or other evidence of payment are attached (with all but the last four numbers of the debtor's Social Security Number redacted)	
(F)	A Record of Any Interest That the Debtor Has in an Account or Program of the Type Specified in § 521(c);	
(G)	A Certificate for Credit Counseling and Debt Repayment Plan, if any, a Certification Under § 109(h)(3), or a Request for Determination by the Court Under § 109(h)(4)	
(H)	A Debtor's Electronic Noticing Request (DeBN Request) Form	*See* Forms page of court website
(I)	Initial Statement About an Eviction Judgment Against You	101A
(J)	A Statement About Payment of an Eviction Judgment	101B

(3) Electronically filed petitions and accompanying documents must be filed in the order listed in paragraph (a)(1).

(b) Creditors' Schedules. Debtors must list creditors alphabetically with the full address of each, including post office box or street number, city or town, state and ZIP code. If the debtor knows that an account or debt, including any applicable domestic support obligation, as that term is defined in §101(14A), has been assigned or is in the hands of an attorney or other agency for collection, the full name and address of the assignee or agent must be listed, but without twice extending the dollar amount of the debt. Each entry required by this subsection must be separated by two spaces from the next entry. If an agency of the United States or the State of Kansas is listed as a creditor, the agency must be listed as D. Kan. LBR 2002.2 provides.

* * *

As amended 12/1/24, 3/17/22, 3/17/19 (formerly S.O. 18-2), 3/17/18, 3/17/16, 3/17/08, 3/17/07, 10/17/05, 3/17/05.

Related Forms:

Declaration Regarding Payment Advices or Evidence of Payment under 11 U.S.C. §521(a)(1)(B)(iv)

Declaration Re: Electronic Filing

Debtor's Electronic Noticing Request (DeBN)

LBR 1007.2
PREPARATION AND FILING OF MATRIX

(a) General Requirements. A matrix not electronically filed must be prepared as follows:

(b) Matrix Required. An optically scannable creditor(s) matrix, signed and verified as provided in Fed. R. Bankr. P. 1008, is required when:

(1) a new case (all chapters) is filed,

(2) an amendment to a case (all chapters) is filed containing additional creditors. This matrix must list only those creditors added.

(c) Original. A matrix must be an original printed document on standard bond paper that is free of headers, footers, titles, lines, marks, or smudges.

(d) Fonts/Typefaces. Parties must prepare matrices in a standard typeface or print style. Courier 10 pitch, Prestige Elite 12 pitch, or Letter Gothic 12 pitch are recommended. Do not use script, ornamental, calligraphic, or symbol fonts. Dot matrix printer fonts are not scannable and will not be accepted.

(e) Format. Parties must type matrices in a single column with left line justification. A matrix must list addresses in a single column in order for the optical character reader to automatically scan the material from left to right, line by line.

(f) Lines. Each name/address must consist of no more than five lines with the city, state, and ZIP codes located on the last line. Do not type "attention" lines or account numbers on the last line. If needed, this information should be placed on the second line of the name/address. At least one blank line must be placed between each name/address block.

(g) Postal Codes. All state names must be represented by the two-letter abbreviations (both letters capitalized) authorized by the U.S. Postal Service.

(h) Margins. Lists must not contain letters closer than one inch from any edge of the document.

(i) Line Length. The name line must not exceed 50 characters. Subsequent lines must not exceed 40 characters.

(j) Punctuation. In conformity with U.S. Postal Service guidelines, addresses must exclude punctuation, including periods, commas, or special characters, including #, %, /, and ( ), except the hyphen in the ZIP+4 code.

(k) Excluded Names. Do not include the debtor, joint debtor, attorney for debtor, trustee, or United States trustee on the matrix. The computer will automatically retrieve them for noticing. The name of the debtor must be listed on the reverse side of each page for identification purposes.

(l) Alphabetical Order. All creditors must be listed in alphabetical order.

(m) Duplication. Do not duplicate names and addresses.

* * *

As amended 3/17/13, 3/17/08.

LBR 1009.1
AMENDMENTS TO LISTS AND SCHEDULES OF CREDITORS AND APPLICABLE DEADLINES

(a) Notice. Debtor must serve amendments to Schedules D, E/F, G, or H and matrices on any entity affected by the amendment, the case trustee and the United States trustee, with a notice in compliance with the Notice of Amendment of Schedules D, E/F, G or H (Addition of Creditor(s)) form.

(b) Verification. Debtor must sign and verify an amendment in the same manner required for originals.

(c) Filing Fees. Debtor must accompany an amendment to schedules or lists of creditors with the applicable filing fee prescribed by the Administrative Office of the United States Courts in effect on the date the amendment is filed.

(d) Matrix. Debtor must add new parties included in amended schedules to the matrix in accordance with the instructions published on the Court's website.

(e) Notice Exception in Conversion Cases. The Debtor is not required to file and serve the Notice of Amendment of Schedules D, E/F, G or H (Addition of Creditor(s)) form when an Amended Schedule is filed concurrently with the conversion to another chapter if all newly added creditors were added to the matrix and were sent the Notice of Bankruptcy Case issued by the clerk's office.

* * *

As amended 3/17/23, 10/17/05.
Related forms:
Notice of Amendment of Schedules D, E/F, G or H (Addition of Creditor(s))

INTERIM LBR 1020.1
CHAPTER 11 REORGANIZATION CASE FOR SMALL BUSINESS DEBTORS OR DEBTORS UNDER SUBCHAPTER V

Federal Rule of Bankruptcy Procedure 1020 applies in the Bankruptcy Court for the District of Kansas but, effective April 25, 2020, is amended on an interim basis to state:

(a) DEBTOR DESIGNATION. In a voluntary chapter 11 case, the debtor shall state in the petition whether the debtor is a small business debtor or a debtor as defined in § 1182(1) of the Code and, if the latter, whether the debtor elects to have subchapter V of chapter 11 apply. In an involuntary chapter 11 case, the debtor shall file within 14 days after entry of the order for relief a statement as to whether the debtor is a small business debtor or a debtor as defined in § 1182(1) of the Code and, if the latter, whether the debtor elects to have subchapter V of chapter 11 apply. The status of the case as a small business case or a case under subchapter V of chapter 11 shall be in accordance with the debtor's statement under this subdivision, unless and until the court enters an order finding that the debtor's statement is incorrect.

(b) OBJECTING TO DESIGNATION. The United States trustee or a party in interest may file an objection to the debtor's statement under subdivision (a) no later than 30 days after the conclusion of the meeting of creditors held under § 341(a) of the Code, or within 30 days after any amendment to the statement, whichever is later.

(c) PROCEDURE FOR OBJECTION OR DETERMINATION. Any objection or request for a determination under this rule shall be governed by Rule 9014 and served on: the debtor; the debtor's attorney; the United States trustee; the trustee; the creditors included on the list filed under Rule 1007(d) or, if a committee has been appointed under § 1102(a)(3), the committee or its authorized agent; and any other entity as the court directs.

* * *

As amended 4/25/20 (*see* S.O. 20-4 and S.O. 22-2), 2/19/20 (*see* S.O. 20-1).

LBR 1072.1
COURT LOCATIONS

The United States Bankruptcy Court for the District of Kansas is in continuous session for transacting judicial business on all business days throughout the year at the Kansas City, Topeka, and Wichita divisions. The court may conduct special sessions of court at other locations within the district.

* * *

LBR 1073.1
ASSIGNMENT OF CASES

(a) Initial Assignment of Cases. The clerk assigns cases to the Kansas City, Topeka, and Wichita divisions based on where the case is filed.

(b) Reassignment of Cases. A bankruptcy judge, in the interest of justice or to further the efficient disposition of court business, may return a case in whole or in part to the clerk for reassignment to another bankruptcy judge as directed by the Chief Bankruptcy Judge.

(c) Judicial Business. The Chief Bankruptcy Judge is responsible for the administration of the judicial business of the court.

* * *

LBR 2002.1
NOTICE TO CREDITORS AND OTHER INTERESTED PARTIES

(a) General. The Bankruptcy Noticing Center ("BNC") will generally mail all notices served by the clerk.

(b) Undelivered Notices. The clerk will deliver all undelivered notices to the debtor's attorney except where the debtor is not represented by counsel. The clerk will retain notices where the debtor is not represented. The BNC will return undelivered notices in Adversary Proceedings to the clerk.

(c) Corrections. A matrix that does not comply with D. Kan. LBR 1007.1 or D. Kan. LBR 1007.2 may cause certain notices to be undeliverable by the BNC. The clerk, or some other person the court directs, will notify the debtor's attorney, or the debtor if not represented, of any undelivered notices, together with the underlying matrix deficiency (e.g., incomplete address, missing ZIP code). Within 7 days after notification, the debtor's attorney, or the debtor if not represented, must:

(1) file the corrected BNC Bypass Notice; and

(2) serve any undelivered notices to all parties not served by the BNC.

(d) Preferred Addresses and National Creditor Registration Service in Chapter 7 or 13 cases filed after October 16, 2005, under 11 U.S.C. § 342(e) and (f).

(1) Pursuant to 11 U.S.C. § 342(e) and (f), an entity and the BNC may agree that when the court directs the BNC to give a notice to that entity, the BNC will give the notice in the manner agreed to and at the address or addresses the entity supplies to the BNC. That supplied address is conclusively presumed to be a proper address for notice. The BNC's failure to use the supplied address does not invalidate any notice that is otherwise effective under applicable law.

(2) A creditor's filing of a notice directly with the BNC of its preferred address pursuant to 11 U.S.C. § 342(f) will constitute a filing of the notice with the court.

(3) Registration with the National Creditor Registration Service must be accomplished through the BNC. Forms and registration information are available at

https://bankruptcynotices.uscourts.gov.

(4) A local form to use when filing notice of preferred address under 11 U.S.C. § 342(e) is available on the court's website at http://www.ksb.uscourts.gov.

* * *

As amended 12/1/24, 3/17/20, 3/17/10, 3/17/09, 3/17/08, 10/17/05, 3/17/05.

LBR 2002.2
SCHEDULING, LISTING, AND NOTICING THE UNITED STATES AND AGENCIES OF THE STATE OF KANSAS AS A CREDITOR

(a) Departments, Agencies, and Instrumentalities of the United States. When a department, agency, or instrumentality of the United States is a creditor, the schedules and matrix must list that agency at the address provided in subsection (a) of Appendix 1-01 to LBR 2002.2 posted on the court's public website at https://www.ksb.uscourts.gov/register-government-mailing-addresses. Any notice or service given to an address listed pursuant to this rule will be in addition to any notice required by statute, rule or regulation. *See also* D. Kan. LBR 7004.1 and Fed. R. Bankr. P. 7004(b)(4) and (5) regarding service in adversary proceedings and contested matters.

(b) Departments, Agencies, and Instrumentalities of the State of Kansas. When any department, agency, or instrumentality of the State of Kansas is a creditor, the schedules and matrix must list that agency at the address provided in subsection (b) of Appendix 1-01 to LBR 2002.2 posted on the court's public website at https://www.ksb.uscourts.gov/register-government-mailing-addresses. Any notice or service given to an address listed pursuant to this rule will be in addition to any notice required by statute, rule or regulation. *See also* D. Kan. LBR 7004.1 and Fed. R. Bankr. P. 7004(b)(6) regarding service in adversary proceedings and contested matters.

(c) Responsibility to Update Addresses. A federal or state department, agency, or instrumentality with a noticing address listed in Appendix 1-01 to LBR 2002.2 is responsible to promptly inform the Clerk of any change to that address.

* * *

As amended 4/1/24, 3/17/23, 3/17/21, 3/17/20, 3/17/19, 3/17/18, 3/17/16, 3/17/15, 3/17/14, 3/17/13, 3/17/12, 3/17/11, 3/17/08.

Appendix 1-01 to LBR 2002.2
Noticing Addresses for the United States and Agencies of the State of Kansas as a Creditor
(Rev. 4/1/2024)

(a) Departments, Agencies, and Instrumentalities of the United States.

(1) United States Attorney's Office. When any department, agency, or instrumentality of the United States is a creditor, the schedule of creditors and matrix must also list the United States Attorney's Office located in the division headquarters where the petition for relief is filed. The addresses are:

A. Office of United States Attorney
Robert J Dole US Courthouse Suite 360
500 State Avenue
Kansas City KS 66101-2433

B. Office of United States Attorney
US Courthouse Suite 290
444 Southeast Quincy Street
Topeka KS 66683-3592

C. Office of United States Attorney
1200 Epic Center
301 N Main
Wichita KS 67202-4812

(2) Addresses for certain Departments, Agencies and Instrumentalities of the United States. When one of the following departments, agencies, or instrumentalities of the United States is a creditor, the schedule and matrix must list the agency at the address indicated:

A. DEPARTMENT OF AGRICULTURE (except for Farm Service Agency and Rural Development, which are individually listed)

Office of the General Counsel
United States Department of Agriculture
PO Box 419205 Mail Stop 1401
Kansas City MO 64141-6205

Farm Service Agency
3600 Anderson Avenue
Manhattan KS 66503-2511

USDA Rural Development
PO Box 66879
St Louis MO 63166

B. DEPARTMENT OF EDUCATION (DOE)
For noticing on schedules and the matrix:
US Department of Education
PO Box 16448
St Paul MN 55116-0448

US Department of Education
Business Operations/Federal Student Aid
50 United Nations Plaza
Mailbox 1200 Room 1176
San Francisco CA 94102

For service of process, such as adversary proceedings:
Education Department
Office of General Counsel
400 Maryland Ave NW Room 6E353
Washington DC 20202-2110

C. DEPARTMENT OF HEALTH AND HUMAN SERVICES (HHS)
US Dept of Health and Human Services
Office of the General Counsel
601 East 12th Street Room N1800
Kansas City MO 64106

D. DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT (HUD)
Regional Counsel
Dept of Housing and Urban Development
Gateway Tower II Room 200
400 State Avenue
Kansas City KS 66101-2406

E. INTERNAL REVENUE SERVICE (IRS)
Internal Revenue Service
PO Box 7346
Philadelphia PA 19101-7346

F. SMALL BUSINESS ADMINISTRATION (SBA)
District Counsel
US Small Business Administration
10675 Bedford Ave Suite 100
Omaha NE 68127

G. SOCIAL SECURITY ADMINISTRATION
SSA OGC Office of Program Lit Bankruptcy
6401 Security Boulevard
Baltimore MD 21235

H. UNITED STATES POSTAL SERVICE
Law Department
US Postal Service
9350 South 150 East
Suite 800
Sandy UT 84070-2716

I. VETERANS ADMINISTRATION (VA)
VA DMC
PO Box 11930
St Paul MN 55111-0930

(b) Departments, Agencies, and Instrumentalities of the State of Kansas. When one of the following departments, agencies, or instrumentalities of the State of Kansas is a creditor, the schedule and matrix must list the agency at the address indicated:

A. Kansas Department of Administration
OSM Payroll Garnishments
ESOB Suite 300
700 SW Harrison St
Topeka KS 66603

B. Kansas Dept for Aging and Disability Services
c/o Chief Counsel
New England Building
503 S Kansas Ave
Topeka KS 66603-3404

C. Kansas Department of Agriculture
Office of Chief Counsel
1320 Research Park Dr
Manhattan KS 66502

D. Kansas Department of Commerce
Attn Legal Department
1000 SW Jackson
Suite 100
Topeka KS 66612-1354

E. Kansas Department of Education
Landon State Office Building
900 SW Jackson Street Suite 102
Topeka KS 66612

F. Kansas Dept of Health and Environment
Office of Legal Services
1000 SW Jackson Suite 560
Topeka KS 66612-1368

G. Kansas Department of Labor
Attn Legal Services
401 SW Topeka Blvd
Topeka KS 66603-3182

H. Kansas Department of Revenue
Civil Tax Enforcement
PO Box 12005
Topeka KS 66601-2005

I. Kansas Dept for Children and Families
Office of the Secretary
555 S Kansas Ave 6th Floor
Topeka KS 66603

J. Kansas Department of Transportation
Eisenhower State Office Bldg
3rd Floor West
700 SW Harrison
Topeka KS 66603-3745

K. Kansas Department of Wildlife and Parks
1020 South Kansas Ave
Room 200
Topeka KS 66612-1233

* * *

LBR 2002.3
NOTICES TO CREDITORS

(a) Voluntary Case. In a voluntary chapter 7 case, chapter 12 case, or chapter 13 case, after 70 days following the order for relief under that chapter or the date of the order converting the case to chapter 12 or chapter 13, it is permissible that all notices required by Fed. R. Bankr. P. 2002(a) be mailed only to:

(1) the debtor;
(2) the trustee;
(3) all indenture trustees;
(4) creditors that hold claims for which proofs of claim have been filed;
(5) creditors, if any, that are still permitted to file claims because an extension was granted under Rule 3002(c)(1) or (c)(2); and
(6) parties in interest expressly requesting notice**.**

(b) Involuntary Case. In an involuntary chapter 7 case, after 90 days following the order for relief under that chapter, it is permissible that all notices required by Fed. R. Bankr. P. 2002(a) be mailed only to those specified in subsection (a) above.

(c) Insufficient Assets. In a case where notice of insufficient assets to pay a dividend has been given to creditors under Fed. R. Bankr. P. 2002(e), after 90 days following the mailing of a notice of the time for filing claims under Rule 3002(c)(5), it is permissible that all notices required by Fed. R. Bankr. P. 2002(a) be mailed only to those specified in subsection (a) above.

* * *

Adopted 3/17/21 (formerly S.O. 20-3).

LBR 2004.1
EXAMINATIONS

(a) Scheduling by Notice. No order is necessary to authorize a Fed. R. Bankr. P. 2004 examination, or to require production of documents at the examination. Examinations may be scheduled upon notice filed with the Court and served on the trustee, the debtor, the debtor's attorney and the party to be examined. To the extent that a request for production of documents under this rule may be construed as a request under Bankruptcy Rule 7034, the time to respond is shortened to 14 days. *See* the Notice of Rule 2004 Examination form for a sample notice.

(b) Reasonable Notice. Attendance at an examination and production of documents may not be required less than 14 days after actual delivery of the notice, except by agreement or court order. The examining party must attempt to arrange a mutually agreeable time and place for any examination. Counsel for the examining party shall certify in the notice what attempts counsel made to contact the examinee or, if represented, counsel for the examinee prior to filing the notice.

(c) Protective Order. Upon any interested party filing, at least 4 business days prior to the date of the proposed examination, a motion for protective order stating the reasons for prohibiting, limiting or rescheduling the examination, the examination shall be stayed until the court decides the motion. The court may summarily deny a motion for protective order where the movant has failed to make reasonable efforts to confer with opposing counsel or parties.

(d) Subpoena. No subpoena is necessary to compel attendance of, or production of documents from, the debtor at an examination of the debtor, but a subpoena is necessary to compel the attendance of, or production of documents by, any other witness.

(e) Videotaped Examinations. Examinations may be videotaped. The notice or subpoena must indicate that the examination is to be videotaped and whether it will also be recorded stenographically.

* * *

As amended 3/17/22, 3/17/16.
Related forms:
Notice of Rule 2004 Examination
Subpoena for Rule 2004 Examination (Director's Form B2540)

LBR 2014.1
APPLICATION FOR EMPLOYMENT OF PROFESSIONALS

(a) Motion for Approval. Any entity seeking approval of employment of a professional person under 11 U.S.C. § 327, 1103(a) or 1114, or Fed. R. Bankr. P. 2014 (including retention of ordinary course professionals) shall file with the Court a motion and a supporting affidavit or verified statement of the professional person. Promptly after learning of any additional material information relating to such employment (such as potential or actual conflicts of interest), the professional employed or to be employed shall file and serve a supplemental affidavit setting forth the additional information.

(b) Notice and Hearing. All retention motions shall be heard on the first hearing date that would allow adequate notice of the retention motion and hearing as required by Fed. R. Bankr. P. 2002, 6003, and 9013 as well as D. Kan. L.B.R. 9013.2 and 9013.3. If the retention motion is granted, the retention shall be effective as of the date the motion was filed, unless the Court orders otherwise.

(c) Professional Disclosure. Any professional person whose employment is sought pursuant to this Local Rule must disclose its employment, or intended employment, of another professional for whom reimbursement will be requested; provided, however, if such disclosure would require

the disclosure of privileged information or information which may reveal confidential litigation strategy, such disclosure may be excused by the Court. Even if disclosure is excused, however, in order to be reimbursed for any payment made by it to the other professional, the professional must comply with Fed. R. Bankr. P. 2016 and make any other disclosures or provide any other information required by title 11, U.S.C., the Federal Rules of Bankruptcy Procedure, or the presiding judge's fee guidelines, if any.

(d) Noticing by Chapter 7 Trustee. When a Chapter 7 trustee applies for appointment as attorney for the estate, the notice required by paragraph (b) may be restricted to the United States trustee, only.

* * *

As amended 3/17/18, 3/17/16, 3/17/10, 10/17/05.

LBR 2016.1
MONTHLY COMPENSATION OF PROFESSIONALS

(a) Submission and Service. In a Chapter 11 or 12 case, a professional employed or seeking employment under § 327 to provide services in the case may file a separate motion for monthly payment of fees and expenses. The motion must state the filing date of the application to employ and, if applicable, the date an order granting the application to employ was entered of record.

(b) Provisions for Payment of Fees and Expenses. The motion must state the percentage amount of fees and expenses the professional seeks to collect on a monthly basis. The motion may request that up to 100% of the fees and 100% of the expenses be paid monthly. The motion and the proposed order granting the motion must provide that in the event 100% of the fees are paid, the professional will hold no less than 10% of the fees in trust pending the court's approval of an interim or final fee application, unless the court orders otherwise.

(c) Service. The motion must be served with notice required by the noticing guidelines applicable to the division and judge to whom the case is assigned. Unless the court directs otherwise, the motion must be served on:

(1) the debtor;
(2) debtor's attorney;
(3) the United States trustee;
(4) all creditors holding secured claims;
(5) all parties requesting notice; and
(6) any operating creditors' committee, or if none, on the list of creditors with the 20 largest unsecured claims who are not insiders (Official Form 104 or Official Form 204).

(d) Order. The professional must submit a proposed order with the motion in accordance with the court's guidelines for submission of orders. It must state that the allowance of monthly payments of fees and expenses does not constitute an interim or final approval of the fees and expenses.

* * *

As amended 3/17/19, 3/17/16, 3/17/10.

LBR 2090.1
ATTORNEYS - ADMISSION TO PRACTICE

(a) Admission of Attorneys. The bar of this court consists of those attorneys admitted to practice and in good standing now and in the future as members of the bar of the United States District Court for the District of Kansas, in accordance with D. Kan. Rules 83.5.1 through 83.5.4.

(b) Appearance *Pro Hac Vice*. D. Kan. Rule 83.5.4 applies to the attorneys of the court except that, at the time a motion to appear *pro hac vice* is filed, a proposed order granting the motion must be submitted to the court.

* * *

As amended 3/17/19 (formerly S.O. 18-4).

LBR 2090.2
PROFESSIONAL CONDUCT

D. Kan. Rules 83.5.4 through 83.6.12 apply to the attorneys of the court.

* * *

LBR 3001.1
CLAIMS

(a) Service. Claimants in Chapters 11, 12, and 13 must send a copy of the proof of claim directly to the debtor at the time of filing, if the debtor is not represented by an attorney.

(b) Secured and Unsecured Claims. A proof of claim must indicate whether the claim is secured, unsecured, or if both, must specify the respective amounts claimed. The claim may include proposed amounts for secured and unsecured claims and must clearly indicate that it includes a proposed amount.

(c) Amendment to Claim in Chapter 7. A proof of claim, other than a priority claim, may be amended at any time prior to the trustee's notice of final distribution. A priority claim may be filed or amended on or before 14 days after the trustee mails the summary of the trustee's final report to creditors or the date on which the trustee commences final distribution under § 726, whichever is earlier. If the trustee has not objected to secured claims, the trustee must give 21 days' notice to all parties who have filed secured claims of his or her intent to file and serve a notice of final distribution.

(d) Filing of Requests for Administrative Expenses in a Chapter 7 Case. A request for payment of administrative expenses must be filed prior to the trustee's notice of final distribution.

* * *

As amended 12/1/24, 3/17/10, 3/17/07, 10/17/05.

LBR 3002.1.1
REQUIRED STATEMENTS FOR SECURED DEBTS ON A PERSONAL RESIDENCE

(a) Scope of Rule. This rule requires certain statements from creditors of consumer debtors who are directly repaying debt secured by a mortgage on real property or a lien on personal property the debtor occupies as the debtor's personal residence. This rule applies in Chapters 7, 12, and 13, applies only to consumer loan relationships, and applies only as long as the debtor is in bankruptcy and protected by the automatic stay.

(b) Purpose.

(1) The purpose of this rule is to maintain, to the greatest degree possible, the routine flow of information from secured creditors to debtors with respect to secured loans constituting secured debt (as that term is defined by 11 U.S.C. § 101(8)) where the debtor is retaining possession of the collateral and continuing to make the regular installment payments directly to the secured creditor during a bankruptcy case. It is the intent of this rule to support the normal issuance of regular monthly statements typically issued by secured creditors to consumer borrowers who are not in bankruptcy and to provide consumer debtors with a creditor contact point so that a debtor can obtain specific information on the status of such loans, if needed.

(2) A creditor's good faith attempt to comply with this order in furnishing information to the consumer debtor shall not expose the secured creditor to claims of violating the automatic stay.

(c) Defined Term. For purposes of this rule, the term "Mortgage Creditor" shall include all creditors whose claims represent consumer debts secured in whole or in part by a mortgage on real property or a lien on a personal property interest in manufactured housing where the debtor occupies such real property or manufactured housing as the debtor's personal residence.

(d) Mortgage Creditor's Duties.

(1) Except as provided in paragraph (2) of this section, and except as provided in LBR 3015(b).2, if the Mortgage Creditor provided monthly statements to the consumer debtor pre-petition, the Mortgage Creditor shall continue to provide monthly statements to all Chapter 12 and Chapter 13 consumer debtors who have indicated an intent to retain the subject collateral in their plan, and to all Chapter 7 debtors whose statement of intention (Official Form 108) indicates an intent to reaffirm the debt secured by the subject collateral. Such statements shall be provided unless and until the Mortgage Creditor is granted relief from the automatic stay under 11 U.S.C. § 362(d). The monthly statements shall contain at least the following information concerning post-petition payments:

(i) The date of the statement and the date the next payment is due;
(ii) The amount of the current monthly payment;
(iii) The portion of the payment attributable to escrow, if any;
(iv) The post-petition amount past due, if any, and from what date;
(v) Any outstanding post-petition late charges;
(vi) The amount and date of receipt of all payments received since the date of the last statement;
(vii) A telephone number and contact information that the debtor or the debtor's attorney may use to obtain reasonably prompt information regarding the loan and recent transactions; and
(viii) The proper payment address.

(2) If pre-petition the Mortgage Creditor provided the debtor with "coupon books" or some other pre-printed, bundled evidence of payments due, the Mortgage Creditor shall not be required to provide monthly statements under (1) of this section. The Mortgage Creditor shall, however, be required to supply the debtor with additional coupon books as needed or requested in writing by the debtor.

(3) The Mortgage Creditor shall provide the following information to the debtor upon the reasonable written request of the debtor:

(i) The principal balance of the loan;
(ii) The original maturity date;
(iii) The current interest rate;
(iv) The current escrow balance, if any;
(v) The interest paid year to date; and
(vi) The property taxes paid year to date, if any.

(4) If the case is a Chapter 12 or 13 case where the secured consumer debt is not modified or paid through the plan, and the Mortgage Creditor believes the debtor is in default, the Mortgage Creditor shall send a letter alleging such default to the debtor and debtor's attorney, and also by email to debtor's attorney, not less than 14 days before taking any steps to modify the automatic stay. Such written notice of default shall not be required in instances where the debtor has filed with the Court a plan or plan modification in which

the debtor makes known the intent to abandon or surrender the property securing the Mortgage Creditor's claim.

(e) Form of Communication. For the purposes of this rule, Mortgage Creditors shall be considered to have sent the requisite documents or monthly statements to the debtor when the creditor places it in any form of communication, which in the usual course would result in the debtor receiving the document or monthly statement, to the address that the debtor last provided to the Court. The form of communication may include, but is not limited to, electronic communication, United States Postal Service, or use of a similar commercial communications carrier.

(f) Issuance of Monthly Statements is not a Stay Violation. Mortgage Creditors who provide account information or monthly statements under subsection (d) of this rule shall not be found to have violated the automatic stay by doing so, and Mortgage Creditors may contact the debtor about the status of insurance coverage on property that is collateral for the Mortgage Creditor's claim, may respond to inquiries and requests for information about the account from the debtor, and may send the debtor statements, payment coupons, or other correspondence that the Mortgage Creditor sends to its non-debtor customers without violating the automatic stay. In order for communication to be protected under this provision, the communication must indicate it is provided for information purposes and does not constitute a demand for payment.

(g) Motions to Show Cause. As a result of a Mortgage Creditor's alleged non-compliance with this rule, a debtor may file a Motion for the Creditor to Show Cause no earlier than 60 days after the Mortgage Creditor's failure to comply with this rule. Before filing the motion, the debtor must make good faith attempts in writing to contact the Mortgage Creditor and determine the cause of any omission, and must indicate in the motion the good faith attempts taken, together with a summary description of any response provided by the Mortgage Creditor.

(h) Non-Conforming Statements and Substantial Compliance. If a Mortgage Creditor's regular billing system can provide a statement to a debtor that substantially complies with this rule, but does not fully conform to all of its requirements, the Mortgage Creditor may request that the debtor accept such statement. If a debtor declines to accept the non-conforming statement, a Mortgage Creditor may file a motion, on notice to the debtor and the debtor's attorney, if any, seeking a declaration of the Court that cause exists to allow such non-conforming statements to satisfy the Mortgage Creditor's obligations under this rule. For good cause shown, the Court may grant a waiver for purposes of a single case or multiple cases, and for either a limited or unlimited period of time. No waiver will be granted, however, unless the proffered statement substantially complies with this rule.

* * *

As amended 4/1/24, 3/17/18.

LBR 3002.2
EXTENSION FOR GOVERNMENTAL UNIT TO FILE PROOF OF CLAIM

(a) Chapter 7 Asset Case. If notice of assets pursuant to FRBP 3002(c)(5) is given that payment of a dividend appears possible, the proof of claim deadline for governmental units shall be the longer of 180 days after the petition was filed or 90 days after the notice of assets or as otherwise provided in the Federal Rules.

(b) After Conversion to Chapter 12 or Chapter 13 Case. If a case is converted from chapter 7 to chapter 12 or chapter 13, the proof of claim deadline for governmental units shall be the longer of 180 days after the petition was filed or 70 days after the order of conversion or as otherwise provided in the Federal Rules.

* * *

Adopted 3/17/22.

LBR 3003.1
AUTOMATIC CLAIMS BAR DATE IN CHAPTER 11, SUBCHAPTER V, CASES WHEN FILED

(a) Subchapter V Cases. In a Chapter 11, Subchapter V, case, unless otherwise ordered, the claims bar date will be 70 days after, and for claims by governmental units 180 days after, the latest of:

(1) the date of entry of the order for relief,

(2) the date of conversion of the case to Chapter 11, Subchapter V, or

(3) the date of the amendment of the petition to designate the case as a Subchapter V case. In the case of conversion or re-designation of a case to Subchapter V, any previously set bar date will govern, unless otherwise ordered.

(b) Non-Subchapter V Cases. This rule does not apply to Chapter 11 cases not designated as Subchapter V.

* * *

Adopted 3/17/22.

LBR 3010.1
SMALL DIVIDENDS IN CHAPTER 13 CASES

Chapter 13 Trustees may distribute payments of less than $15 without a court order when the Trustee determines it is unlikely that the distribution to a particular creditor(s) will ever reach the $15.00 limit provided by Fed. R. Bankr. P. 3010(b) or that the Trustee would need to hold funds longer than reasonable if an earlier distribution is not made.

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As amended 3/17/20, 3/17/08.

LBR 3015(b).1
CHAPTER 13 PLAN AND PRE-CONFIRMATION ADEQUATE PROTECTION PAYMENTS

(a) Filed with Petition. A Chapter 13 plan filed with the petition will be served, together with notice of the time for filing objections and the hearing to consider confirmation, by the Bankruptcy Noticing Center ("BNC").

(b) Filed after Petition. A plan filed after the petition, or an amended plan, must be served, together with notice of the time for objections and the hearing to consider confirmation, by the debtor's attorney, or the debtor if not represented.

(c) Treatment of Real Estate Mortgage Arrearage Claims and Continuing Payments. A timely claim for mortgage payments or mortgage arrearages will be paid by the Chapter 13 trustee, as filed and allowed, and the amount stated in the proof of claim will control over any plan, unless an order, stipulation, or specific language in the Order of Confirmation directs otherwise.

(d) Treatment of Priority Claims. A timely priority claim will be paid in full by the Chapter 13 trustee, as filed and allowed, and the amount stated in the proof of claim will control over any plan, unless an order, stipulation or specific language in the Order of Confirmation directs otherwise.

(e) Objection to claim. Nothing in this Rule alters the right of the debtor, trustee or other party in interest to object to any claim.

(f) Plan Payments; Adequate Protection Payments under § 1326(a)(1)(C):

(1) *Pre-confirmation § 1326(a)(1) Payments to Trustee.* Unless the court orders otherwise, debtors must pay directly to the trustee all pre-confirmation adequate protection payments payable to creditors whose claims are secured by purchase money security interests in personal property. The trustee must promptly distribute those payments to the secured creditors whose interests are being protected, except the trustee may retain the portion of the payment representing the statutory percentage trustee fee.

(2) *Plan Payments.* The Chapter 13 plan must specify the amounts to be paid to each allowed secured claim treated under the plan. The total amount of the plan payment the debtor must make pursuant to § 1326(a)(1) must include:

(i) an amount equal to the proposed adequate protection payment of each secured creditor whose claim is secured by a purchase money security interest;

(ii) the variable percentage fee under 28 U.S.C. § 586(e); and

(iii) any other amounts to be paid to the trustee under the plan.

(3) *Amount of Adequate Protection Payments under § 1326(a)(1)(C).* Unless the court orders a different payment amount, the debtor must pay adequate protection payments equaling the payment provided in the debtor's Chapter 13 plan pursuant to subsection (g)(2) of this Rule plus statutory percentage trustee fees required when that payment is made to the trustee.

(4) *Direct Payment Opt-Out.* Secured creditors eligible for direct payment of adequate protection under § 1326(a)(1) may opt for direct payments by filing a motion and noticing it for objection in accordance with these rules and the procedures of the division where the case is pending. If no timely objection is filed, the court may enter an order requiring direct payments without further hearing. In the event such an order is entered, the debtor must make the payments directly to the secured creditor, and file a certification of the payments in accordance with § 1326(a)(1)(C).

(5) *Pre-confirmation Disbursements of Adequate Protection Payments to Secured Creditors by Trustee.* Pre-confirmation disbursements of adequate protection payments under § 1326(a)(1) are authorized without further order, but no disbursement may be made unless the secured creditor has filed a proof of claim. Pre-confirmation disbursements under § 1326(a)(1) may be made to creditors within 35 days of the filing of the proof of claim, unless, within 7 days prior to the end of the 35-day period, the trustee has not received sufficient, cleared funds to make the payment. The trustee is authorized to deduct from an allowed claim all § 1326(a)(1) pre-confirmation disbursements.

(g) Presumptive Interest Rate on Secured Claims. The presumptive interest rate to be paid on secured claims paid through a chapter 13 plan shall be calculated in chapter 13 cases filed on or after January 1, 2024, as follows:

(1) Calculation. Three percent shall be added to the 5-year Daily Treasury Par Yield Curve Rate published by the US Department of the Treasury for the first business day of the quarter in which the bankruptcy case was filed (e.g., January 2, April 1, July 1, and October 1, 2024).

(2) Notice. The current rate shall be determined by the Clerk of the Bankruptcy Court and posted on the Bankruptcy Court's website no later than the 10th day of each quarter (January 10, April 10, July 10, October 10).

(3) Duration. The interest rate in effect on the petition date shall remain in effect for the duration of a case.

(4) Exception. Proposed deviations from the presumptive interest rate must be set forth in the plan's nonstandard provisions.

(5) This subsection does not determine the interest rate applicable to mortgage conduit payments under LBR 3015(b).2.

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As amended 12/1/24 (previously S.O. 24-1), 3/17/20, 3/17/15, 3/17/10, 3/17/07, 10/17/05.

LBR 3015(b).2
CONDUIT MORTGAGE PAYMENTS IN CHAPTER 13 CASES

(a) Scope of Rule. This rule applies to all Chapter 13 cases filed on or after September 15, 2017.

(b) Required Conduit Payments. Regular payments owed by a Debtor to a Creditor holding a claim secured by the Debtor's principal residence shall be made by the Debtor to the Trustee for payment through the Chapter 13 plan if the Debtor (i) is delinquent as of the petition date or (ii) becomes delinquent after the petition date. Such payments are referred to herein as "conduit payments."

(c) Definitions. As used in this rule, the following capitalized terms mean:

(1) The "Arrearage" is the total amount past due as of the petition date, as calculated on Official Form 410A, and shall be equal to the amount contained in the creditor's filed and allowed Proof of Claim, unless specifically controverted in the plan or by an objection to the claim as required by D. Kan. LBR 3015(b).1.

(2) "Debtor" or "Debtors" are hereafter referred to as Debtor.

(3) "Real Property Creditor" is the entity claiming a mortgage or a servicer of the mortgage on the real property that is the principal residence of the Debtor. This rule is intended to cover a loan secured by a security agreement in Debtor's Principal residence (i.e., a promissory note on a manufactured or mobile home), and such lender will be referred to as a "Real Property Creditor" herein for the sake of simplicity, even if some specific references, e.g., to "mortgage" or "escrow analysis," are not strictly applicable.

(4) The Standing Chapter 13 Trustee is referred to as "Trustee."

(d) Other Rules Applicable. Nothing in this rule shall relieve any party from complying with any obligation under the United States Bankruptcy Code, the Federal Rules of Bankruptcy Procedure, the Local Rules of the District and Bankruptcy Courts of Kansas, or any applicable Standing Orders. These procedures shall not be modified by any plan language without express order from the Court.

(e) Debtor's Duties.

(1) Debtor may be excused from complying with this rule only upon entry of a Court order upon a showing of circumstances justifying the same.[1]

(2) Debtor must complete a Mortgage Creditor Checklist and forward it to the Trustee (not to the Court) within 14 days of the filing of the bankruptcy petition.

(3) Debtor or Debtor's attorney shall mail a copy to the Trustee of all correspondence, notices, statements, payment coupons, escrow notices and default notices concerning any adjustment to the monthly payments or interest rate immediately upon receipt of the same.

(4) Debtor shall include the regular payment amount owing to the Real Property Creditor, inclusive of Trustee's fees, in the plan payment to be paid by Debtor to the Trustee.

(5) Pursuant to provisions of Paragraph (f)(5) below, in the event the monthly conduit payment changes due to either changed escrow requirements or a change in an adjustable interest rate, Debtor's plan payment to the Trustee shall change by the same amount, plus the Trustee's fee.

(6) For any Debtor who is employed and required to make mortgage payments through the Trustee, an employer pay order shall be promptly entered by the Clerk of the Bankruptcy Court as provided in Debtor's plan and served upon Debtor's employer. Until the employer begins to withhold bankruptcy plan payments from Debtor's pay, Debtor is required to make plan payments directly to the Trustee. A Debtor may be excused from complying with employer pay orders only upon the entry of a Court order upon a showing of circumstances justifying the same.

(7) If Debtor modifies a previously confirmed Chapter 13 Plan that originally provided for Debtor to pay the on-going post-petition payments directly to a holder of the claim to bring all or some part of the on-going payments into the Chapter 13 Plan for payments, then any post-confirmation amendment to the Plan must spell out with specificity all of the following:

(i) the name, address, and redacted account number of the creditor to whom the payments are to be paid;

(ii) the month for which the Trustee is to commence making the on-going post-petition payments;

(iii) the amount and treatment of the post-petition delinquency, including the gap between the date when Debtor proposed for modifying the Plan and the month for which the Trustee is to commence making the mortgage payment, if any.

(f) Trustee's Duties:

(1) The Trustee is authorized to deduct from any payments collected, pursuant to 11 U.S.C. § 1326, the percentage Trustee fees then in effect as necessary costs and expenses, together with any fee, charge, or amount required under § 1326.

(2) The Trustee shall allow as an administrative expense an amount equal to 2 full regular monthly payments inclusive of escrow deposits and 2 associated late fees. This allowance shall reimburse Real Property Creditor for post-petition delinquencies that may accrue

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[1] *See, e.g.*, *In re Perez*, 339 B.R. 385, 409 (Bankr. S.D. Tex. 2006) (Court lists 21 non-exclusive factors to be examined in determining whether to excuse debtors from conduit payment scheme or employer withholding orders). The additional cost associated with the trustee fee on the conduit payment will not, by itself, constitute good cause.

until the Trustee begins payments to that Creditor. This added amount shall bear interest at 5% unless Debtor's Plan contains a different rate.

(3) In the event Debtor is granted an abatement of Plan payments, the Trustee is authorized to pay any missed mortgage payments in a separate administrative claim record that includes late fees. This amount shall bear interest at 5% unless Debtor's Plan contains a different rate.

(4) The Trustee will not make payments to the Real Property Creditor on the pre-petition arrearage until such time as a Proof of Claim is filed with the Court and the Plan is confirmed. The Court is deemed to have granted authority to the Trustee to disburse conduit payments, as if the plan had been confirmed, once the Real Property Creditor has filed a Proof of Claim to which a fully executed Official Form 410A and an Addendum to Chapter 13 Proof of Claim for Residential Home Mortgage Debt Paid Through the Chapter 13 Trustee has been attached. The Trustee is required to make a full mortgage payment for each full plan payment made. The Trustee is not required to make partial payments to Real Property Creditors.

(5) Any notice filed pursuant to Fed. R. Bankr. P. 3002.1(b) or (c) shall be treated as an amendment to the creditor's claim and Debtor's plan. The Trustee is authorized to disburse the new conduit payment or fees as soon as practicable after resolution of any motion under Fed. R. Bankr. P. 3002.1(b)(2) without seeking formal modification of the plan.

(6) Should the new conduit payment or fees jeopardize the feasibility of the plan, the Trustee may file a motion to amend the plan or seek conversion or dismissal of the case, whichever the Trustee deems appropriate.

(g) Real Property Creditor's Duties:

(1) The Real Property Creditor shall file a Proof of Claim, to which it shall attach the Official Form 410A and Addendum to Chapter 13 Proof of Claim for Residential Home Mortgage Debt Paid Through the Chapter 13 Trustee.

(2) At least 45 days prior to the change of the name of the Real Property Creditor payee, or the address to which payments should be made, Real Property Creditor shall notify the Trustee, Debtor, and the attorney for the Debtor of any such change in a document that conforms to a Notice of Transfer of Servicing and Claim or Notice of Transfer of Claim (Other than for Security).

(3) Any amount paid or tendered to the Real Property Creditor prior to confirmation shall be applied to the next post-petition payment under the terms of the note due, without penalty. Alternatively, the mortgage holder may apply the payment as it deems appropriate, but said application shall be deemed to be the Real Property Creditor's waiver of all fees and expenses to which it is entitled under the loan documents.

(4) The holder of the mortgage claim shall not file a separate proof of claim for the amount of the 2 full regular monthly post-petition payments provided for in paragraph (f)(2) or include such post-petition payments in the pre-petition arrearage claim.

(5) Confirmation of the plan shall impose an affirmative duty and legal obligation on the Real Property Creditor to do all of the following:

(i) Apply the payments received from the Trustee for payment on the Arrearage, if any, only to such Arrearage pursuant to the plan. The Arrearage shall be deemed paid in full upon the entry of the Discharge Order in the case, unless otherwise ordered by the Court.

(ii) Deem the pre-petition Arrearage (and post-petition Arrearage, if any) contractually current upon confirmation of the plan so as to preclude the imposition of late payment charges or other default-related fees and services based solely on any

pre-petition default or the payments referred to in paragraph (f)(2) above. This obligation will have no force and effect if the case is dismissed or converted.

(iii) Apply the post-petition monthly mortgage payments paid by the Trustee or by Debtor to the month in which they were designated to be made under the plan. Even if such payments are placed in suspense, forbearance, or similar account, they will be deemed to have been applied to the note pursuant to this subsection.

(6) If the modification of a previously confirmed plan provides for mortgage payments to be made by the Trustee rather than the Debtor, and if the Real Property Creditor has not previously filed a proof of claim, the Real Property Creditor must file a proof of claim stating the amounts of the on-going payments as well as any post-petition delinquency that has occurred, including the gap between the date when Debtor modified the Plan and the month for which the Trustee is to commence making the mortgage payment, if any. Subparagraph (g)(1) of this Rule applies to the filing of the proof of claim.

(h) No Variance Without Court Order. The procedures set out in this rule may be varied in a particular case only by Court order.

* * *

As amended 12/1/24, 3/17/22, 3/17/19; adopted 8/22/17 (formerly S.O. 11-3).

Related forms:

Mortgage Creditor Checklist

Authorization to Release Information to the Trustee Regarding Secured Claims Being Paid by the Trustee

Addendum to Chapter 13 Proof of Claim for Residential Home Mortgage Debt Paid Through Chapter 13 Trustee

Notice of Transfer of Servicing and Claim

Notice of Transfer of Claim (Other than for Security)

LBR 3015(h).1
CHAPTER 13 TRUSTEE'S MODIFICATION OF PLAN AFTER CONFIRMATION

Notice to all creditors of post-confirmation motions to modify plan, required by Fed. R. Bankr. P. 3015(h), is waived when the motion is filed by a Chapter 13 Trustee, and the sole purpose of the motion is to recover an asset that the court ordered debtor to repay to the estate, but has not repaid. Notice to the Debtor and the Debtor's Attorney, only, is required.

* * *

Amended 3/17/21 (formerly LBR 3015(g).1), 3/17/09 (formerly D. Kan. S.O. 08-2).

LBR 3022.1
FINAL DECREE IN NON-INDIVIDUAL CHAPTER 11 REORGANIZATION CASES

(a) Timing. Within 3 months after the court orders confirmation, the plan proponent must file an application for a final decree, or show cause why the final decree cannot be entered. If an application is not filed within 3 months, the plan proponent must file a status report every 6 months until entry of the final decree.

(b) Content. The application for final decree must show that the estate is fully administered and must include information concerning:

(1) the date the order confirming the plan became final;

(2) whether deposits required by the plan were distributed;

(3) whether the property proposed by the plan to be transferred was transferred;

(4) whether the debtor or successor of the debtor under the plan has assumed the business or the management of the property dealt with by the plan;
(5) whether payments under the plan have commenced;
(6) whether all motions, contested matters and adversary proceedings are finally resolved;
(7) whether all fees due under 28 U.S.C. § 1930 are paid;
(8) a summary of professional fees awarded in the case;
(9) the percentage paid to unsecured creditors; and
(10) other facts enabling the court to decide the provisions of the final decree.

(c) Notice. The applicant must give 28 days' notice to the following in accordance with the noticing guidelines provided by the clerk:

(1) all parties requesting notice;
(2) the United States trustee; and
(3) any operating creditors' committee, or if none, creditors holding the largest 20 unsecured claims.

* * *

As amended 3/17/10, 10/17/05.

LBR 4001(a).1
STAY RELIEF

(a) Adequate Protection. A creditor may combine a motion for stay relief with a request for adequate protection.

(b) Waiver. The following constitutes a voluntary waiver of the 30-day requirement for a hearing contained in § 362(e):

(1) the motion for stay relief includes a request for any other relief;
(2) movant sets a motion for stay relief, pursuant to D. Kan. LBR 9013.2 for a docket more than 30 days from the filing of the motion, which is considered a preliminary hearing under that section; and
(3) movant fails to request that the final hearing conclude within 30 days of the preliminary hearing.

(c) Effect of Debtor's Stated Intent to Surrender Property. If an individual Chapter 7 debtor's statement of intention (Official Form 108) to surrender property securing a debt owed to a creditor was not amended or withdrawn, the debtor is deemed to agree to the creditor's stay relief motion concerning that property. When a stay relief motion clearly informs the clerk that it is filed pursuant to this provision, the filing fee is the same as for a motion for approval of an agreement or stipulation for stay relief. A creditor filing a stay relief motion pursuant to this provision must give notice of the motion (and the deadline for filing objections) to the debtor, as well as to any other parties required by the Bankruptcy Code or applicable rules of procedure.

(d) Information and Documentation Required With Motions For Relief From Automatic Stay. Motions for Relief From Stay must include the following:

(1) copies of documents on which the claim is based, including loan documents and documents evidencing both the grant of the lien, security interest, mortgage or other encumbrance, and its proper perfection or proper recordation;
(2) the balance owing on the petition date, and the date and amount of any payments received since the filing;
(3) the number of payments the debtor is in arrears, and the amount of each payment, including the total arrearage on the petition date;
(4) the movant's best estimate of the collateral's value; and

(5) the identity of any person or entity claiming an interest in the property that is the subject of the motion and of whom movant is aware.

(e) Post-Petition Stay Relief in Chapter 13 Cases. If the movant seeks stay relief for default in post-petition payments on the debtor's principal residence or a long-term debt provided by the Chapter 13 Plan pursuant to § 1322(b)(5), the motion and/or exhibit(s) must contain the following:

(1) a legible post-petition payment history listing the date each post-petition payment was received, the amount of each post-petition payment, and how each post-petition payment was applied;

(2) an itemization of any other expenses or fees due post-petition, including attorney fees, filing fees, late payment fees, and escrow advances;

(3) the total dollar amount necessary to cure the post-petition debt on a date certain;

(4) the address where the current monthly payment is to be mailed if the mailing address is not listed in the movant's filed proof of claim or if the mailing address has changed; and

(5) a statement that the creditor has complied with D. Kan. LBR 3002.1.1(d)(4) if applicable.

(f) Conditional Orders Granting Stay Relief in Chapter 13 Cases. An agreed order resolving the motion for stay relief that does not grant immediate stay relief will be known as a "Conditional Order Granting Stay Relief." The following will apply upon alleged default:

(1) the movant must file and serve a notice of the default on debtor and debtor's attorney that lists each payment allegedly missed and any other term(s) allegedly breached;

(2) if debtor disputes the default, debtor may file a response within the time listed in the Conditional Order Granting Stay Relief or within 14 days, whichever is later, and the court will set the matter for hearing. If debtor does not timely file a response to the notice of default, movant should submit to the court a final order granting stay relief; and

(3) the trustee will continue to disburse on movant's claim until the final order granting relief from stay is entered. After that order is entered, the trustee will adjust movant's claim to zero ($0.00), effective the date of the order, and make no further disbursements on the claim. It is the responsibility of the parties to notify the trustee of the terms of any agreement or decision reinstating the automatic stay, so that the claim may be restored.

(g) Stay Relief. A creditor filing a stay relief motion pursuant to this rule must give notice of the motion (and the deadline for filing objections) to the debtor, as well as to any other parties required by the Bankruptcy Code or applicable rules of procedure. Notice with an objection deadline is not required when the creditor simultaneously submits, with the motion for stay relief, an agreed order signed by the creditor's attorney, debtor's attorney, and trustee.

* * *

As amended 3/17/20, 3/17/16, 3/17/10, 10/17/05.

LBR 4001(a).3
AUTOMATIC STAY - EXTENSION OR IMPOSITION

(a) Scope of Rule. This rule applies to motions to extend the automatic stay pursuant to 11 U.S.C. § 362(c)(3) or to impose the automatic stay pursuant to § 362(c)(4).

(b) Deadline to File. Except for good cause shown in the motion, a motion filed pursuant to 11 U.S.C. § 362(c)(3) shall be filed within 7 days of the date the petition was filed.

(c) Contents of Motion; Affidavit Required if Presumption Arises Under § 362(c)(3)(C) or § 362(c)(4)(D).

(1) Contents of Motion. A motion to extend or impose the automatic stay filed pursuant to this rule shall include the following information:

(i) the number of previous cases under the Bankruptcy Code involving the debtor and pending within the one-year period preceding the filing of the current case;

(ii) the jurisdiction and case number of each such case;

(iii) the date and reason for dismissal of each such previous case;

(iv) an express statement whether any presumption of lack of good faith arises pursuant to § 362(c)(3)(C) or § 362(c)(4)(D); and

(v) the facts upon which the movant relies to (i) rebut any presumption of bad faith and (ii) demonstrate that the filing of the later case is in good faith as to any creditors to be stayed.

(2) Affidavit or Declaration Required if Presumption Arises Under § 362(c)(3)(C) or § 362(c)(4)(D). The movant shall attach a notarized Affidavit signed under penalty of perjury containing the facts upon which the movant relies to rebut any presumption under § 362(c)(3)(C) or § 362(c)(4)(D). In lieu of an Affidavit, the movant may file an Unsworn Declaration Under Penalty of Perjury pursuant to 28 U.S.C. § 1746.

(d) Notice of Hearing. Upon the filing of a motion subject to this rule, the movant shall prepare and serve a notice of hearing that sets a hearing on the motion to any available docket. Although the Court prefers that hearings on motions filed subject to this rule be set to a docket scheduled to address cases of the same chapter, for purposes of this rule an "available docket" includes any docket that:

(1) is listed on the Court's published docket calendar for the divisional office where the case is assigned;

(2) is scheduled to occur no earlier than the second business day after the date that an objection to the motion is due; and

(3) in the case of a motion filed pursuant to § 362(c)(3), is scheduled to take place no more than 30 days from the date the petition was filed.

(e) Special Settings. If there is no available docket as defined by this rule, or if the movant requires an earlier hearing date, the movant shall file with the motion a request for expedited hearing, which the Court may grant or deny in its discretion.

(f) Service of the Motion and Notice of Hearing.

(1) The movant shall promptly serve the motion (and any Affidavit or Declaration) in the manner required by the Bankruptcy Code, the Federal Rules of Bankruptcy Procedure and these rules, upon each party against whom the movant seeks to extend or impose the stay. The movant shall include a certificate of service with the motion. The movant shall not delay service of the motion pending resolution of a motion for expedited hearing or a motion to shorten time to respond to the motion.

(2) The movant shall serve the notice of hearing in the same manner as required for service of the motion.

(g) Objection to Motion. Unless otherwise ordered, any objection to a motion subject to this rule shall be filed within 14 days after service of the motion.

(h) Order Entered Without Hearing. The Court may grant the motion in accordance with Fed. R. Civ. P. 43(c) and Fed. R. Bankr. P. 9017, without hearing, only if:

(1) the movant files and serves, along with the motion, the Affidavit or Declaration signed by the movant containing the facts upon which the movant relies to rebut any presumption under § 362(c)(3)(C) or § 362(c)(4)(D);

(2) no objection to such motion is filed within 14 days subsequent to the service of the motion (or such shorter time as is ordered); and

(3) the Court determines that the motion complies with this rule and that the information contained in the Affidavit or Declaration is sufficient to rebut any presumption under § 362(c)(3)(C) or § 362(c)(4)(D).

(i) No Chapter 13 Trustee Approval. If the Chapter 13 Trustee has not objected to the motion, the Trustee need not have approved the order granting the motion prior to it being uploaded.

(j) Hearing if No Order Entered. If no order has been entered prior to the scheduled hearing, parties should assume the hearing will be held as scheduled, and movant's failure to appear will result in the motion being denied. An objecting party's failure to appear will result in the motion being treated as if that party's objection had been withdrawn.

* * *

Adopted 3/17/15.

LBR 4002.1
TRUSTEE REQUESTS FOR EVIDENCE OF INCOME, INCLUDING TAX RETURNS

(a) Debtor's Duty to Provide Trustee most recently filed Federal and State Income Tax Returns. In addition to the other duties required under § 521, the debtor must provide to the trustee at least 7 days prior to the meeting of creditors held under § 341, a complete copy of the most recent one year of Federal and State income tax returns filed pre-petition with the respective taxing authority, where applicable.

(b) Debtor's Duty regarding Unfiled Returns.

(1) *Most recent unfiled return.* If the debtor has not filed a tax return for the most recent tax year ending before the bankruptcy is filed and that return is not yet due, the debtor must timely file the return with the appropriate taxing authorities, and provide a signed copy of the return to the trustee, within 7 days of its filing.

(2) *Other unfiled tax returns.* If the debtor has not filed any other tax return that is due for a tax year ending before the date the bankruptcy was filed, the debtor must comply with the trustee's request for a copy of the signed return(s), the original of which must be filed with the appropriate taxing authority, within 28 days after the trustee requests a copy of the return.

(c) Debtor's Duty to Provide Trustee Previously Filed Tax Returns and Income and Expenditure Statements. The trustee may request that the debtor provide a copy of Federal and State income tax returns for pre-petition tax periods and for post-petition tax periods for any year in which the case is pending. The trustee may also request that the debtor provide a statement of income and expenditures described in § 521(f)(4). This rule or any trustee request for a return does not constitute a request to the debtor under § 521(f) to file copies of the tax returns or statement of income and expenditures directly with the court.

* * *

As amended 3/17/10, 10/17/05.

LBR 4002.2
TRUSTEE REQUESTS FOR INFORMATION FROM DEBTORS

(a) Compliance with Trustee's Request. Unless the court orders otherwise, a debtor must comply with any written request for information made by a trustee or the United States trustee within 14 days.

(b) Filing of Requests and Responses. The trustee may not file copies of the requests with the court unless the debtor fails to comply with this rule and the trustee requests the court to compel compliance. The debtor must not file copies of responses with the court unless in response to a trustee's motion to compel.

* * *

As amended 3/17/10, 10/17/05.

LBR 4002.3
TAX RETURNS

(a) Place of filing.

(1) The original of all Federal tax returns for pre-petition tax periods filed after the filing of the bankruptcy petition must be filed with:

Internal Revenue Service
ATTN Insolvency/Advisory
2850 NE Independence Ave
Stop 5334 LSM
Lees Summit MO 64064-2327

(2) Except as required by paragraph (a)(3), the original of all State of Kansas tax returns for pre-petition tax periods filed after the filing of the bankruptcy petition must be filed with:

Kansas Department of Revenue
Civil Tax Enforcement
P O Box 12005
Topeka KS 66612-2005

(3) The original of all State of Kansas unemployment tax returns for pre-petition tax periods filed by a Kansas employer after the filing of the bankruptcy petition must be filed with:

Kansas Department of Labor
Attn Delinquent Account Unit
401 Topeka Blvd
Topeka KS 66603-3182

* * *

As amended 3/17/18, 3/17/14, 10/17/05.

LBR 4004.1
DISCHARGE IN CASES UNDER CHAPTER 11 SUBCHAPTER V, CHAPTER 12, AND CHAPTER 13

(a) (a) Chapter 12 and Chapter 13 Cases. Debtor shall file with the Court a combined Certification of Debtor and Motion for Entry of Discharge in order to obtain a discharge under 11 U.S.C. § 1228(a) or § 1328(a).

(1) Timing**.** The Certification and Motion shall not be filed until after the trustee has filed the Notice of Plan Completion.

(2) Content**.** The Certification shall be signed by the debtor under penalty of perjury and must substantially comply with the Chapter 13 Debtor's Certifications Regarding Domestic Support Obligations and Section 522(q) (Form B2830).

(3) Limited Notice Required. The Certification and Motion in Chapter 12 and Chapter 13 cases shall be filed electronically with the Court using the Court's Electronic Filing System and provide 21 days' notice to the following:

(A) Parties requesting electronic noticing through the Court's Electronic Filing System; and

(B) Any Domestic Support Obligation (DSO) claim holder and the State child support enforcement agency, if applicable.

(b) Chapter 11 Subchapter V Cases. In a Chapter 11 case if the debtor elected for subchapter V to apply, the debtor must file a motion requesting entry of an order of discharge after the debtor's plan is confirmed.

(1) Timing of Motion. If the plan was confirmed under

(A) 11 U.S.C. § 1191(a) (as a consensual plan) then, within 14 days of the entry of the order confirming debtor's plan, the debtor must file a motion requesting entry of an order of discharge and must submit to the court a simple proposed order stating that the motion requesting entry of an order of discharge is granted, whereupon the court may enter the simple proposed order and then issue a separate order of discharge, or

(B) 11 U.S.C. § 1191(b) (as a non-consensual plan) then, unless the court approved a written waiver of discharge, the debtor must file a motion requesting entry of an order of discharge as soon as practicable after the debtor completed all payments due within the first 3 years of the plan or such longer period not to exceed 5 years as the court had fixed, and the debtor must contemporaneously submit to the court a simple proposed order stating that the motion requesting entry of an order of discharge is granted, whereupon the court may enter the simple proposed order and then issue a separate order of discharge.

(2) Limited Notice Required. No notice and hearing of the motion requesting entry of an order of discharge is required in Chapter 11 Subchapter V cases except that Debtor must serve the motion upon the debtor, the trustee, the US Trustee, all indenture trustees, creditors that hold claims for which proofs of claim have been filed, and parties in interest expressly requesting notice.

* * *

As amended 4/1/24, 3/17/23, 3/17/21.

LBR 4070.1
INSURANCE ON MOTOR VEHICLES

(a) Definitions.

(1) "Motor vehicle" includes, but is not limited to, any automobile, motorized mobile home, or house trailer designed to travel and/or capable of travel, on the public highways.

(2) "Proof of insurance" means a certificate of insurance, or other written evidence of sufficient reliability from the insurance carrier, stating the property that is insured, that insurance is in force, the amounts and types of coverage, a notation of the secured party as a loss payee, and the time period for which the coverage exists.

(b) Proof of Insurance. Except as provided in § 1326(a)(4), proof of insurance against physical damage and loss for any motor vehicle belonging to or leased by the debtor or the estate that is subject to the lien of a creditor holding an allowed secured claim must be furnished to the trustee and the creditor at or before the meeting held under § 341, or on written demand of the creditor. Written demand by the creditor for proof of insurance must be served on the debtor by first-class mail and on debtor's attorney by first-class mail and by email, or ECF notification. Failure to furnish proof of insurance at or before the meeting held under § 341 or on written demand as provided by these rules is presumed to mean there is no insurance in effect. Any written "binder" must be followed by proof of permanent insurance.

(c) Termination of Insurance. If during the pendency of a case, insurance is canceled, not renewed, expires, or lapses for any reason, on any motor vehicle, the following sequence of events may occur:

(1) *Injunction.* The debtor is enjoined from using the motor vehicle as long as the motor vehicle remains uninsured.

(2) *Surrender of Possession.* If the debtor fails to provide proof of re-insurance to the creditor within 3 business days following delivery of the notice provided in subsection (b), or fails to provide proof of re-issuance by the day before termination of any grace period granted by the insurer, if later, the debtor must surrender the motor vehicle to the creditor.

(d) Motion for Relief From Stay. If debtor fails to furnish proof of insurance under (b), above, the creditor may file a motion for expedited relief from the automatic stay under § 362. Failure to furnish proof of insurance under this rule constitutes *prima facie* evidence of irreparable injury, loss or damage pursuant to § 362(f) and Fed. R. Bankr. P. 4001(a)(2)(A).

(e) Subsequent Termination. In the event insurance on a motor vehicle lapses twice during the pendency of a case, the court may, on the filing of a motion in accordance with (d), accompanied by an affidavit evidencing compliance by the creditor with this rule and evidencing the previous lapse of insurance coverage, grant the creditor relief, including relief from the automatic stay, without further hearing.

* * *

As amended 4/1/24, 3/17/09, 10/17/05.

LBR 5003.1
ACCESS TO COURT RECORDS

(a) Access. The public records of the court are available for examination in the clerk's office during normal business hours. Access to electronically-filed documents is available through the Public Access to Court Electronic Records (PACER) system.

(b) Copies. The clerk will make and furnish copies, as time permits, of official public court records after request and payment of prescribed fees.

(c) Sealed or Impounded Records. Records or exhibits ordered sealed or impounded by the court are not public records within the meaning of this rule.

(d) Restricted Access Records. Records or exhibits filed with the court, which are nonpublic as specified in the Code or Federal Rules of Bankruptcy Procedure, are not public records within the meaning of this rule.

(e) Search for Cases by the Clerk. The clerk may search the most recent 10 years of the master index maintained in the office and issue a certificate of the search. The clerk charges a fee for each name for which a search is conducted, payable in advance, as prescribed by the Administrative Office of the United States Courts.

(f) Judgment/Order Registry. The court's CM/ECF computer system fulfills the requirements of Fed. R. Bankr. P. 5003, which requires the clerk to maintain copies of every final judgment or order affecting title to or lien on real property or for the recovery of money or property, and will serve as the court's judgment/order registry.

* * *

As amended 12/1/24, 3/17/08, 10/17/05.

LBR 5003.2
COURT RECORDS

Any exhibit, sealed document, or filed deposition in the clerk's custody more than 30 days after the time for appeal, if any, has expired or an appeal has been decided and mandate received, may be returned to the parties or destroyed by the clerk if unclaimed after reasonable notice.

* * *

As amended 12/1/24.

LBR 5005.1
FILING BY ELECTRONIC MEANS

(a) Background and Authority. Federal Rule of Civil Procedure 83, Federal Rules of Bankruptcy Procedure 5005(a)(3), and District of Kansas Rule 83.8.12, authorize this court to establish practices and procedures for the filing, signing, and verification of pleadings and documents by electronic means.

(b) Adoption of Procedures. The court adopts the *Administrative Procedures for Filing, Signing, and Verifying Pleadings and Documents by Electronic Means* (a copy of which is attached as Appendix 1-01 to this Rule) as a means of attorney registration and distribution of passwords to permit electronic filing and notice of pleadings and other documents.

(c) Designation of Electronic Filing. All cases are assigned to the Electronic Filing System unless the court orders otherwise. All petitions, motions, memoranda of law, or other pleadings and documents filed with the court in a case assigned to the Electronic Filing System must be filed electronically unless otherwise permitted in these rules, the administrative procedures guide, or court authorization. Electronic filing must be consistent with this Rule and *Appendix 1-01, Administrative Procedures for Filing, Signing, and Verifying Pleadings and Documents by Electronic Means*.

Appendix 1-01 to LBR 5005.1
Administrative Procedures for Filing, Signing, and Verifying Pleadings and Documents by Electronic Means
(Rev. 12/1/24)

I. Scope of Electronic Filing

A. Electronic Filing Required. Effective September 1, 2004, all petitions, motions, memoranda of law, or other pleadings and documents required to be filed with the court by an attorney in any case assigned to the Electronic Filing System pursuant to subsection B below shall be electronically filed, except as expressly provided and in exceptional circumstances preventing a Filing User from filing electronically.

B. Assignment of Cases. All cases pending or filed on September 1, 2004, will be assigned to the Electronic Filing System.

C. Exception. Notwithstanding the foregoing, persons (other than attorneys) who are not Filing Users in the electronic filing system are not required to electronically file pleadings and other documents in a case assigned to the System. The court may, from time to time, and only in exceptional circumstances, relieve attorneys from the electronic filing requirement. Trial exhibits are not to be filed electronically unless otherwise directed by the court.

D. Filing Fees. For filings that require a fee to be paid, the attorney must promptly pay the fee through Pay.gov. The court will not maintain electronic billing or debit accounts for lawyers or law firms.

II. Eligibility, Registration, Passwords

A. Attorney Eligibility. Attorneys admitted to the bar of this court (including those admitted pro hac vice and attorneys authorized to represent the United States), United States trustees and their assistants, bankruptcy administrators and their assistants, private trustees, and others as the court deems appropriate, may register as Filing Users of the court's Electronic Filing System. Registration is in a form prescribed by the clerk and requires the Filing User's name, address, telephone number, Internet e-mail address and, in the case of an attorney, a declaration that the attorney is admitted to the bar of this court.

B. Eligibility of Other Parties. If the court permits, a party to a pending action who is not represented by an attorney may register as a Filing User in the Electronic Filing System solely for purposes of the action. Registration is in a form prescribed by the clerk and requires identification of the action as well as the name, address, telephone number and Internet e-mail address of the party. If, during the course of the action, the party retains an attorney who appears on the party's behalf, the attorney must advise the clerk to terminate the party's registration as a Filing User upon the attorney's appearance.

C. Limited Use Eligibility. Limited Users without counsel may register as Filing Users of the court's electronic filing system for the sole purpose of filing claims, transfers of claims, reaffirmation agreements, requests to receive notices, withdrawal of claims, changes of address, applications for unclaimed funds, and certificates of completion of an instructional course concerning personal financial management pursuant to Fed. R. Bankr. P. 1007(b)(7). The clerk may provide alternative means for Limited Users without counsel to file those documents without registering as Filing Users.

D. Registration. Registration as a Filing User constitutes: (1) waiver of the right to receive notice by first class mail and written consent to receive notice electronically; and (2) waiver of the right to service by personal service or first class mail and written consent to electronic service, except with regard to service of a summons and complaint under Fed. R. Bankr. P. 7004. Waiver

of service and notice by first class mail applies to notice of the entry of an order or judgment under Fed. R. Bankr. P. 9022.

E. Passwords. Once registration and training, as prescribed by the court, are completed, the Filing User will be granted access to the Electronic Filing System. Filing Users agree to protect the security of their passwords and immediately notify the clerk if they learn that their password has been compromised.

F. Revocation of Registration. The court reserves the right to revoke an Electronic Filer's access to the Electronic Filing System and, therefore, his or her authority and ability to electronically file documents, for failure to comply with the provisions of these *Administrative Procedures for Filing, Signing, and Verifying Pleadings and Documents by Electronic Means*, failure to pay fees required for documents electronically filed, or other misuse of the Electronic Filing System.

III. Consequences of Electronic Filing

A. Filing. Electronic transmission of a document to the Electronic Filing System consistent with these rules, together with the transmission of a Notice of Electronic Filing from the court, constitutes filing of the document for all purposes of the Federal Rules of Bankruptcy Procedure and the local rules of this court, and constitutes entry of the document on the docket kept by the clerk under Fed. R. Bankr. P. 5003.

B. Legibility. The Filing User is responsible for assuring the legibility of all documents, scanned or otherwise, filed with the court.

C. Official Record. When a document has been filed electronically, the official record is the electronic recording of the document as stored by the court, and the filing party is bound by the document as filed. Except in the case of documents first filed in paper form and subsequently converted to electronic form, a document filed electronically is deemed filed at the date and time stated on the Notice of Electronic Filing from the court.

D. Deadlines. Filing a document electronically does not alter the filing deadline for that document. Filing must be completed before midnight local time where the court is located in order to be considered timely filed that day.

IV. Entry of Court-Issued Documents

A. Entry of Orders. All orders, decrees, judgments, and proceedings of the court will be filed in accordance with these rules, which will constitute entry on the docket kept by the clerk under Fed. R. Bankr. P. 5003 and 9021. All signed orders will be filed electronically by the court or court personnel. Any order filed electronically without the original signature of a judge has the same force and effect as if the judge had affixed the judge's signature to a paper copy of the order and it had been entered on the docket in a conventional manner.

B. Orders may also be issued as "text-only" entries on the docket, without an attached document. Such orders are official and binding.

C. The court may sign, seal, and issue a summons electronically, although a summons may not be served electronically.

D. Submission of Orders. A Filing User submitting a document electronically that requires a judge's signature must promptly deliver the document in such form as the court requires.

V. Attachments and Exhibits

Filing Users must submit in electronic form all documents referenced as exhibits or attachments, unless otherwise directed by the court. A Filing User must submit as exhibits or attachments only those excerpts of the referenced documents that are directly germane to the matter

under consideration by the court. Excerpted material must be clearly and prominently identified as such (*also see* D. Kan. Rule 5.1(e) and D. Kan. LBR 9072.1(a) dealing with bulky/voluminous exhibits). Filing Users who file excerpts of documents as exhibits or attachments under this rule do so without prejudice to their right to timely file additional excerpts or the complete document. Responding parties may timely file additional excerpts or the complete document that they believe are directly germane. The court may require parties to file additional excerpts or the complete document.

VI. Sealed Documents

Unless the court orders otherwise, motions for leave to file under seal and documents that the court ordered to be filed under seal must be filed electronically in accordance with the instructions for electronically filing sealed documents published on the Court's website. If the exception contained in subsection I.C of this Appendix applies (dealing with pro se parties or attorneys whom the Court excused from electronically filing), a motion for leave to file under seal or a document that the court has ordered to be filed under seal must be filed in paper form.

VII. [Reserved]

VIII. Signatures

A. [Reserved]

B. Password Security. No Filing User or other person may knowingly permit or cause to permit a Filing User's password to be used by anyone other than an authorized agent of the Filing User.

C. [Reserved]

D. Documents requiring signatures of more than one party must be electronically filed either by: (1) submitting a scanned document containing all necessary signatures; (2) submitting an electronic document upon which the consent of the other parties is represented; or (3) in any other manner approved by the court.

IX. Service of Documents by Electronic Means

A. Notice of Electronic Filing. The "Notice of Electronic Filing" that is automatically generated by the court's Electronic Filing System constitutes service or notice of the filed document on Filing Users. Parties who are not Filing Users must be provided notice or service of any pleading or other document electronically filed in accordance with the Federal Rules of Bankruptcy Procedure and the local rules.

B. Certificate of Service. A certificate of service must be included with all documents filed electronically, indicating that service was accomplished through the Notice of Electronic Filing for parties and counsel who are Filing Users and indicating how service was accomplished on any party or counsel who is not a Filing User. Certificates of Service shall be in substantial compliance with D. Kan. LBR 9013.3.

C. Nothing contained in this procedure relieves counsel of the burden of obtaining personal service under Fed. R. Bankr. P. 7004 or Fed. R. Civ. P. 4, where appropriate.

X. Notice of Court Orders and Judgments

Immediately upon the entry of an order or judgment in an action assigned to the Electronic Filing System, the clerk will transmit to Filing Users in the case, in electronic form, a Notice of Electronic Filing. Electronic transmission of the Notice of Electronic Filing constitutes the notice required by Fed. R. Bankr. P. 9022. The clerk, or other party as the court may direct, must give

notice to a person who has not consented to electronic service in paper form in accordance with the Federal Rules of Bankruptcy Procedure.

XI. Technical Failures

A Filing User whose filing is made untimely as the result of a technical failure may seek appropriate relief from the court.

XII. Public Access

A. PACER Access. Any person or organization, other than one registered as a Filing User under these rules, may access the Electronic Filing System at https://ecf.ksb.uscourts.gov by obtaining a PACER log-in and password. Those who have PACER access but who are not Filing Users may retrieve docket sheets and documents, but they may not file documents.

B. Clerk's Office Access. Access to all public documents is available, without obtaining a password, in the clerk's office during regular business hours, Monday through Friday. Conventional and certified copies of electronically filed documents may be purchased at the clerk's office during regular business hours Monday through Friday. The fee for copying and certifying shall be in accordance with the Bankruptcy Court Miscellaneous Fee Schedule promulgated by the Judicial Conference of the United States pursuant to 28 U.S.C. § 1930(b).

C. Misuse. Information posted on the System must not be downloaded for uses inconsistent with the privacy concerns of any person.

* * *

As amended 12/1/24, 3/17/22, 3/17/21, 3/17/20, 3/17/19 (formerly S.O. 18-3), 3/17/18, 3/17/17, 3/17/16, 3/17/14, 3/17/08.

LBR 5072.1
COURTROOM PRACTICES

(a) Addressing the Court. Attorneys and unrepresented parties must rise when addressing the court, must speak to the court from counsel table or the lectern facing the court and may not approach the bench, except with court permission.

(b) Questioning Witnesses. While questioning witnesses, attorneys and unrepresented parties must stand at counsel table or at the lectern and may not approach the witness, except with court permission. Only one attorney for each party may participate in the examination or cross examination of a witness.

* * *

LBR 5075.1
ORDERS BY BANKRUPTCY CLERK; REVIEW

(a) Orders.

(1) The clerk is authorized to sign and enter the following orders without further direction by the court:

(A) in adversary proceedings,

(i) an order extending once for 14 days, the time to answer, reply or otherwise plead to a complaint, crossclaim or counterclaim if the time originally prescribed to plead has not expired;

(ii) a consent order dismissing an action, except in cases governed by Fed. R. Bankr. P. 7023 and/or D. Kan. LBR 7041.1; and

(iii) entry of default and judgment by default as provided for in Fed. R. Bankr. P. 7055;

(B) an order for the payment of money on consent of all interested parties;

(C) an order permitting payment of filing fees in installments;

(D) an order for compliance requiring timely filing of schedules and statements or for compliance with filing requirements and a notice of intent to dismiss for failure to comply;

(E) an order granting waiver of Chapter 7 filing fees; and

(F) any other order that is specified by Standing Order as not requiring special direction by the court.

(2) A party or attorney submitting an order under this rule must sign it, and that signature is subject to Fed. R. Bankr. P. 9011 and D. Kan. LBR 9011.3.

(b) Clerk's Action Reviewable. For good cause, the court may suspend, alter, or rescind any order entered by the clerk under this rule.

* * *

As amended 3/17/19, 3/17/07, 10/17/05.

LBR 6004.1
PERSONS PROHIBITED FROM PURCHASING AT SALES

(a) Judges or Clerks. No currently serving bankruptcy judge or clerk, or their employees and spouses, may directly or indirectly purchase property from any bankruptcy estate. No former bankruptcy judge or clerk, nor any former member of their staffs, may purchase property directly or indirectly from any bankruptcy estate pending at the time the person left office.

(b) Other Officers.

(1) *Current Service*. No currently serving trustee, examiner, appraiser, auctioneer, accountant, realtor or attorney for a bankruptcy estate, their spouses, their employees and

the spouses of their employees, may directly or indirectly purchase property from any bankruptcy estate pending while the person is serving.

(2) *Former Service*. No person who has served as a trustee, examiner, auctioneer, accountant, realtor or attorney for a bankruptcy estate, and no spouse or employee of those persons, may purchase, directly or indirectly, property from a bankruptcy estate pending at the time the person ceased service.

* * *

As amended 10/17/05.

LBR 6007.1
ABANDONMENT OF PROPERTY OF THE CHAPTER 7 ESTATE

(a) Deadline for Objecting to Abandonment. When the clerk of the court provides the Notice of Bankruptcy Case, Meeting of Creditors and Deadlines, the Notice must contain a provision that within 60 days from the conclusion of the meeting of creditors held under 11 U.S.C. § 341, the Chapter 7 trustee may file notice of intended abandonment of any or all of the debtor's property in the estate as authorized by 11 U.S.C. § 554 without further service on creditors or interested parties. Unless a creditor or interested party objects to abandonment within 75 days after the conclusion of the meeting of creditors, the property subject to the intended abandonment will be deemed abandoned without further notice or order of the court.

(b) Procedure if timely objection. If a creditor or party in interest timely objects, the court will schedule a hearing. The property that is the subject of the objection to the intended abandonment will not be deemed abandoned until the objection is resolved by court order. All other property subject to the intended abandonment, however, will be deemed abandoned without further notice or court order.

* * *

As amended 3/17/14, 10/17/05.

LBR 7003.1
COMMENCEMENT OF ADVERSARY PROCEEDING

(a) Cover Sheet. An Adversary Proceeding Cover Sheet (Form B1040) must be completed and submitted with any complaint commencing an action or any notice of removal from state court.

(b) Case Number System. The clerk will assign each adversary proceeding a number that begins with a two-digit indicator of the year in which the proceeding is filed, followed by a hyphen and the individualized case number of four digits. The four-digit individualized case numbers are as follows:

- Kansas City proceedings begin with a "6" (e.g., 24-6001);
- Topeka proceedings begin with a "7" (e.g., 24-7001);
- Wichita proceedings begin with a "5" (e.g., 24-5001).

* * *

As amended 3/17/20, 3/17/16, 10/17/05.

LBR 7004.1
SERVICE OF SUMMONS AND COMPLAINT ON THE UNITED STATES OR THE STATE OF KANSAS

(a) Service on the United States. When the United States and/or a department, agency or instrumentality of the United States is named as a party defendant, service of any summons or complaint must be made:

(1) in the manner prescribed by rule or statute;

(2) on the United States Attorney's Office located in the division city where the petition for relief is filed; and

(3) on the department, agency or instrumentality of the United States as prescribed by D. Kan. LBR 2002.2.

(b) Service on the State of Kansas. When the State of Kansas and/or a department, agency or instrumentality of the State of Kansas is named as a party defendant, service of any summons or complaint must be made:

(1) in the manner prescribed by rule or statute; and

(2) on the department, agency or instrumentality of the State of Kansas as prescribed by D. Kan. LBR 2002.2.

* * *

As amended 3/17/08, 10/17/05, 3/17/05.

LBR 7012.1
MOTIONS TO DISMISS

(a) Memorandum in Support. A party or attorney filing a Motion to Dismiss pursuant to Fed. R. Bankr. P. 7012 must also file a supporting brief or memorandum.

(b) Time for Filing of Responses and Replies. Any party or attorney filing a brief or memorandum in response to a Motion to Dismiss must file and serve it within 21 days of service of the motion. The moving party may file and serve a supporting brief or memorandum in reply within 14 days of service of the response.

(c) Limit on Responses and Replies. Parties and attorneys may file only one response and one reply without prior court order.

(d) Oral Argument. Parties may request oral argument in the motion or any memorandum.

* * *

As amended 3/17/10, 10/17/05.

LBR 7026.1
DISCOVERY

(a) Application. This rule applies to adversary proceedings, and contested matters as prescribed by Fed. R. Bankr. P. 9014 and when the court orders. Fed. R. Civ. P. 26(a) and (f), and the corresponding sections of this rule, do not apply to contested matters unless the presiding judge specifically orders otherwise.

(b) Completion Time. The parties should complete discovery within four months from the later of the date the case becomes at issue or the date a scheduling order is issued pursuant to Fed. R. Bankr. P. 7016. Ordinarily, the parties should have completed discovery before the pretrial conference. For good cause, the court may establish longer or shorter periods for the completion of discovery.

(c) Notice of Depositions Permitted by Fed. R. Bankr. P. 7030. The reasonable notice for taking a deposition is 7 days. For good cause, the court may enlarge or shorten the time.

(d) Motions for Protective Order.

(1) *Stay of Discovery*. Except as provided in paragraph (2), a motion for protective order filed pursuant to Fed. R. Civ. P. 26(c) or 30(d), or a motion to quash or modify a deposition subpoena filed pursuant to Fed. R. Bankr. P. 9016, stays the particular discovery or deposition pending court order.

(2) *Stay of Properly Noticed Deposition.* A motion filed under this rule will not stay a properly noticed deposition unless filed and served on the attorneys or parties within 14

days after service of the deposition notice and at least 48 hours in advance of the deposition.

(3) *No Appearance at Deposition Required*. No party, witness, or attorney is required to appear at a deposition stayed by a motion under this rule until the court decides the motion or it is otherwise resolved.

(e) Additional Interrogatories to Those Permitted by Fed. R. Civ. P. 33(a). A party must file a motion to seek leave to serve interrogatories in excess of the number permitted by Fed. R. Civ. P. 33(a). The motion must (1) submit the proposed additional interrogatories; and (2) state good cause for those interrogatories. Additional interrogatories served under this rule are subject to subsection (l) of this rule.

(f) Format for Interrogatories. Sufficient space for the insertion of an answer must be provided after each interrogatory if interrogatories are served in paper format. Each answer must directly follow the interrogatory being answered.

(g) Motions Relating to Discovery. Motions under Fed. R. Civ. P. 26(c) or 37(a) directed at depositions, interrogatories, requests for production of documents, or requests for admissions under Fed. R. Bankr. P. 7030, 7033, 7034 or 7036, or at the responses, must be accompanied by copies of the portions of the interrogatories, requests or responses in dispute. Motions under Fed. R. Bankr. P. 9016 directed at subpoenas must be accompanied by a copy of the disputed subpoena.

(h) Depositions. Deposition transcripts may not be filed unless the court orders otherwise. The originals of all stenographically-reported depositions must be delivered to the party noticing the deposition:

(1) after signature by the deponent if he or she has requested to review the transcript and to make changes;

(2) on completion, if the deponent has not requested to review the transcript; or

(3) on certification by the stenographer that following reasonable notice to the deponent and deponent's attorney of the availability of the transcript for signature, the deponent has failed or refused to sign it.

(i) Retention of Originals. The party to whom it is delivered must retain the original of the deposition to be available for appropriate use by any party in a hearing or trial of the case.

(j) Disclosures and Discovery Not to be Filed.

(1) The following must be served on other attorneys and unrepresented parties, but not filed:

(A) disclosures required under Fed. R. Civ. P. 26(a)(1) and (2);

(B) interrogatories under Fed. R. Bankr. P. 7033;

(C) requests for production or inspection under Fed. R. Bankr. P. 7034;

(D) requests for admission under Fed. R. Bankr. P. 7036; and

(E) the responses.

(2) At the same time disclosures, discovery, or responses are served, the serving party must file a certificate of service stating the type of disclosure, discovery or response served, the date and type of service, and the party served.

(k) Use of Discovery at Trial. A party must file with the clerk at the beginning of trial, or earlier if required by court order, the portions of any deposition transcript, interrogatories, requests for production or inspection, admissions, or any responses the party reasonably anticipates using.

(l) Duty to Confer Concerning Discovery Disputes. In addition to the duties required by Fed. R. Bankr. P. 7026 through 7037, unless the court orders otherwise, the court will not entertain any motion to quash or modify a subpoena pursuant to Fed. R. Bankr. P. 9016, or any motion under Fed. R. Civ. P. 26(c) or 37(a), unless the attorney for the moving party confers or has made reasonable effort to confer with opposing attorneys concerning the matter in dispute prior to the filing of the motion. Every certification required by Fed. R. Civ. P. 26(c) and 37 and this rule

related to attempts to resolve discovery or disclosure disputes must describe the steps taken by all attorneys to resolve the disputed issues.

(1) *Definition of "reasonable effort to confer."* "Reasonable effort to confer" means more than mailing or faxing a letter to the opposing party. It requires that the parties in good faith converse, confer, compare views, consult, and deliberate, or in good faith attempt to do so.

(m) Trial Preparation After Close of Discovery.

(1) Parties should ordinarily take the deposition of a material witness not subject to subpoena during the discovery period. Parties may depose a material witness who agrees to appear at trial, but later becomes unable or refuses to attend, at any time prior to trial.

(2) The court may order the physical or mental examination of a party pursuant to Fed. R. Bankr. P. 7035 at any time prior to trial.

* * *

As amended 12/1/24, 3/17/11, 3/17/10, 10/17/05.

LBR 7041.1
DISMISSAL OF BANKRUPTCY CODE § 727 COMPLAINTS OBJECTING TO DISCHARGE

(a) Affidavits of No Consideration. Plaintiff and debtor shall execute and file affidavits with any motion to dismiss a complaint objecting to discharge under § 727 stating that no consideration has been promised or given to effect the withdrawal of the complaint, or stating the nature and amount of any consideration promised or given.

(b) Trustee's Motion to Intervene. If the trustee or the United States trustee objects to dismissal of the complaint, the trustee or the United States trustee must, within 14 days after notice under Fed. R. Bankr. P. 7041, file a motion to intervene and be substituted as plaintiff, and serve it on the parties to the complaint.

* * *

As amended 3/17/10.

LBR 7054.1
TAXATION AND PAYMENT OF COSTS

(a) Procedure for Taxation. Any party allowed costs under Fed. R. Bankr. P. 7054(b) must file a bill of costs on the form provided by the clerk (Form B2630) within 28 days after:

(1) the expiration of time allowed for appeal of a final order; or

(2) the clerk receives an order terminating the action on appeal.

(b) Waiver. Failure of a prevailing party to timely file a bill of costs constitutes a waiver of any claim for costs.

(c) To Whom Payable. All costs taxed are payable directly to the prevailing party, not to the clerk, unless the court orders otherwise.

* * *

As amended 3/17/16, 3/17/13, 3/17/10.

LBR 7056.1
MOTIONS FOR SUMMARY JUDGMENT

(a) Supporting Memorandum. The memorandum or brief in support of a motion for summary judgment must begin with a section containing a concise statement of material facts to which the movant contends no genuine issue exists. The facts must be numbered and must refer

with particularity to those portions of the record on which the movant relies. The court will deem admitted for the purpose of summary judgment, all material facts contained in the statement of the movant unless the statement of the opposing party specifically controverts those facts.

(b) Opposing Memorandum.

(1) A memorandum in opposition to a motion for summary judgment must begin with a section containing a concise statement of material facts as to which the party contends a genuine issue exists. Each fact in dispute must be numbered by paragraph, refer with particularity to those portions of the record on which the opposing party relies, and, if applicable, state the number of movant's fact that is disputed.

(2) If the party opposing summary judgment relies on any facts not contained in movant's memorandum, that party must include each additional fact in a separately numbered paragraph, supported by references to the record, in the manner required by subsection (a). The court will deem admitted, for the purpose of summary judgment, all material facts included in this statement of the non-moving party unless the reply specifically controverts those facts.

(c) Reply Memorandum. In a reply brief, the moving party must respond to the non-moving party's statement of undisputed material facts in the manner prescribed in subsection (b)(1).

(d) Presentation of Factual Material. All facts on which a motion or opposition is based must be presented by affidavit, declaration under penalty of perjury, and/or through the use of relevant portions of pleadings, depositions, answers to interrogatories and responses to requests for admissions. Affidavits or declarations must be made on personal knowledge and by a person competent to testify to the facts stated that are admissible in evidence. Where facts referred to in an affidavit or declaration are contained in another document, such as a deposition, interrogatory answer, or admission, a copy of the relevant excerpt from the document must be attached.

(e) Duty to Fairly Meet the Substance of the Matter Asserted. If the responding party cannot truthfully admit or deny the factual matter asserted, the response must specifically explain in detail the reasons why. All responses must fairly meet the substance of the matter asserted.

(f) Time for Filing of Responses and Replies. A party has 21 days to file and serve a response to a motion for summary judgment. After service of the response, the moving party has 14 days to file and serve a reply memorandum in support of the motion.

(g) Limit on Responses and Replies. Parties may file no more than one response and one reply without prior court order.

(h) Oral Argument. Parties may request oral argument in the motion or any memorandum.

* * *

As amended 3/17/10, 3/17/07, 10/17/05.

LBR 7065.1
RESTRAINING ORDERS AND TEMPORARY INJUNCTIONS IN ADVERSARY ACTIONS

A prayer for a temporary injunction or restraining order included in an adversary complaint pursuant to Fed. R. Bankr. P. 7001 is not sufficient to bring the issue before the court prior to trial. If a ruling before trial is desired, it must be sought by separate motion filed in the adversary proceeding.

* * *

LBR 8010.1
TRANSMITTING THE RECORD FOR A PRELIMINARY MOTION

(a) Duties of Party Filing a Preliminary Motion. If, before the record on appeal is transmitted, a party to an appeal files a preliminary motion in the district court, BAP, or court of appeals for a type of relief listed in Fed. R. Bankr. P. 8010(c), the moving party must:

(1) Contemporaneously with filing the preliminary motion, file in the Bankruptcy Court a notice designating the items to be included in the preliminary record on appeal necessary to determine the preliminary motion.

(2) Within three business days of disposition of the preliminary motion, file in the Bankruptcy Court a notice identifying the disposition of the preliminary motion.

(b) Duties of Party Responding to a Motion for Preliminary Relief. If, before the record on appeal is transmitted, a party responds to a preliminary motion for a type of relief listed in Fed. R. Bankr. P. 8010(c) and relies upon items not designated by the moving party pursuant to subsection (a)(1) of this Rule, then the responding party must, contemporaneously with filing the response to the preliminary motion, file in the Bankruptcy Court a notice cross-designating the items to be included in the preliminary record on appeal necessary to determine the preliminary motion.

(c) Copies for the Bankruptcy Clerk. If paper copies of designated or cross-designated items are needed, a party filing a designation of items must provide a copy of any of those items that the Clerk of the Bankruptcy Court requests. If the party fails to do so, the Clerk must prepare the copy at the party's expense.

* * *

Adopted 3/17/15.

LBR 8021.1
TAXATION AND PAYMENT OF COSTS AFTER APPEAL

(a) Procedure for Taxation. Any party allowed costs under Fed. R. Bankr. P. 8021 must file, within 14 days after entry of judgment on appeal, a bill of costs with the bankruptcy clerk that includes proof of service and an itemized and verified bill of costs. Objections must be filed within 14 days after service of the bill of costs, unless the bankruptcy court extends the time.

(b) Reasonable Efforts to Confer Required. The bill of costs must state that the party seeking costs has made a reasonable effort, in a conference with opposing counsel and/or any self-represented party, to resolve any disputes regarding costs.

(c) Waiver. Failure of a prevailing party to timely file a bill of costs constitutes a waiver of any claim for costs.

(d) To Whom Payable. All costs taxed are payable directly to the party allowed costs, not to the clerk, unless the court orders otherwise.

* * *

Adopted 3/17/15.

LBR 9004.1
FORM OF PLEADINGS AND DOCUMENTS

(a) Pleadings, Motions, Briefs and Other Documents.

(1) *Generally*. Pleadings, motions, briefs, and other documents submitted for filing, including all exhibits and/or attachments, must be:

- submitted on 8-1/2 x 11 inch paper;
- typewritten, printed, or computer-generated with type no smaller than 12 points set no more than an average of 12 characters per inch; and
- double-spaced where practicable.

(2) *Pagination.* Pleadings, motions, briefs, and other documents submitted for filing (other than exhibits and/or attachments) must be paginated beginning with the first page of the filing and sequentially numbering all pages that follow. Numbered pages include the cover page, table of contents, table of authorities, indices, and all other parts of the document.

(3) *Subsequent Filings.* All pleadings and documents filed subsequent to those commencing a case must be endorsed on the upper right-hand corner of the first page with the case number. The title of the subsequent pleading or document must describe its contents, and state on whose behalf the document is filed.

(4) *Adversary Proceedings.* Fed. R. Bankr. P. 7010 and Official Bankruptcy Forms apply to all pleadings and documents filed in adversary proceedings.

(b) Citation Formats.

(1) *Unpublished Decisions.* An unpublished decision cited in a pleading, motion, brief or other document shall be attached as an exhibit only if it is unavailable via electronic means (e.g., Westlaw or LEXIS). Parties citing unpublished decisions that are available via electronic means must not furnish a copy to the court or to opposing parties unless requested. Unpublished decisions should be cited as follows: *In re Smith*, No. 02-12345 (Bankr. D. Kan. Jan. 7, 2005).

(c) Orders.

(1) *Generally.*

(A) The top margin on the first page of an order must be four inches; all subsequent pages of the order must have a top margin of one inch.

(B) The last line of the order preceding attorney signatures must consist of 3 pound symbols (# # #), centered, to indicate the end of the order. Omit a signature line for the judge because all orders will be signed electronically in the top margin of the first page.

(2) *Resulting from Hearing.* Unless the court directs otherwise, orders resulting from an actual hearing are due 14 days from the date of the hearing. The first paragraph of the order must begin with the actual date of the hearing, e.g.,: "Now on this 23rd day of March, 2013, this matter came before the court..."

(3) *No Hearing Held.* Orders resulting from the failure to object or respond to a notice with objection deadline are due 14 days after the deadline expires. The first paragraph of the order must begin by stating that the matter was noticed with opportunity for hearing but no objections were filed and no hearing was held.

(d) Requests for Relief in Pleadings. The pleading's caption must contain a short statement of the relief requested. Pleadings may not contain an unrelated request for relief, e.g., a motion for relief from the automatic stay may request adequate protection, but may not request unrelated relief, such as a request to dismiss the case. A responsive pleading may not request relief except as permitted by the Federal Rules of Bankruptcy Procedure.

(e) Orders Addressing Requests for Relief. Orders resolving pleadings must address all the requests for relief made in the pleading and, to assist the clerk with docketing and quality control, must identify in the caption of the order the relief granted and/or denied.

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As amended 12/1/24, 3/17/16, 3/17/12, 3/17/10, 10/17/05, 3/17/05.

LBR 9006.1
BRIDGE ORDERS

Unless otherwise provided in the Code or in the Fed. R. Bankr. P., if a motion to extend the time to take any action is filed before the expiration of the period prescribed by the Code, the Fed. R. Bankr. P., these Local Rules, or Court order, the time shall automatically be extended until the Court acts on the motion, without the necessity for the entry of a bridge order.

* * *

Adopted 3/17/18.

LBR 9010.1
APPEARANCE BY CORPORATIONS, PARTNERSHIPS AND ENTITIES OTHER THAN INDIVIDUALS

A corporation, partnership, or entity other than an individual may appear and participate only through an attorney in an adversary proceeding, contested matter or other court hearing involving the questioning of a witness or a presentation to the court. This rule does not prohibit a corporation, partnership, or other entity from acting without an attorney in filing a claim, voting to elect a trustee, serving on an approved committee, or filing an acceptance/rejection of a plan under Chapters 11, 12, or 13.

* * *

LBR 9011.3
SANCTIONS

(a) Sanctions Under Applicable Rules and Statutes.

(1) *On Court's Own Initiative.* The court, on its own initiative, may issue an order to show cause why sanctions should not be imposed against a party and/or an attorney for violation of these rules, Fed. R. Bankr. P. 9011, or other applicable statutes. The court will state the reasons for issuing the show cause order. Unless the court orders otherwise, all parties must respond within 14 days after the filing of the order to show cause. The responses may include affidavits and documentary evidence as well as legal arguments.

(2) *On a Party's Motion.* A party may raise the issue of sanctions by a timely-filed motion. The responding party may respond in the same manner specified above.

(3) *Procedure.* After the response time expires and without further proceedings, the court may rule on the violation and the nature and extent of any sanction imposed. Discovery and evidentiary hearings on sanctions will be permitted only by court order. The court will articulate the factual and legal bases for its ruling on sanctions.

(b) Imposition of Sanctions. If the court finds a violation of these rules, Fed. R. Bankr. P. 9011, other applicable statutes or a court order, the court may impose sanctions pursuant to Fed. R. Civ. P. 11, Fed. R. Bankr. P. 9011, or other federal rules or statutes. In addition, the court may issue other orders as are just under the circumstances, including the following:

(1) an order designating certain matters or facts as established for purposes of the action;

(2) an order refusing to allow a party to support or oppose designated claims or defenses, or prohibiting the party from offering specified witnesses or introducing designated matters in evidence;

(3) an order striking pleadings, in whole or in part, staying proceedings until compliance with the rule, dismissing the action, in whole or in part, or entering a judgment by default against a party; or

(4) an order imposing costs, including attorney's fees against a party, or a party's attorney, who has failed to comply with a local rule, court order or statute.

(c) Sanctions Within the Discretion of the Court. The court has discretion to impose sanctions for violation of these rules or a court order. In considering sanctions, the court may consider whether a party's failure was substantially justified or whether other circumstances make sanctions inappropriate.

* * *

LBR 9011.4
SIGNATURES

(a) Signing of Pleadings by Unrepresented Parties. The original of every pleading, motion or other paper filed by a party not represented by an attorney must bear the genuine signature of the unrepresented party.

(1) Petitions, lists, schedules, statements, amendments, pleadings, affidavits, and other documents which must contain original wet ink signatures or which require verification under Fed. R. Bankr. P. 1008, or an unsworn declaration as provided in 28 U.S.C. § 1746, may contain, in lieu of the original wet ink signature, a copy, or digitally scanned image, of the original document containing a wet ink signature of the unrepresented party.

(2) Stamped signatures or signatures created by use of special software programs for electronic signatures, such as DocuSign and Sign Easy, are not acceptable as signatures of an unrepresented party.

(3) If an unrepresented party submits a document that does not bear a genuine signature, the unrepresented party may promptly cure the defect by completing and signing the Declaration Regarding Filing form in conformity with the instructions on the form. The form is available on the Forms page of the court website. Failure to cure the defect may result in the court treating the document as unfiled.

(b) Signing of Pleadings by Attorney for Parties.

(1) The original of every pleading, motion, or other paper filed by an attorney must bear the genuine signature of at least one attorney of record and comply with D. Kan. Rule 5.1(b) as to form. When an attorney signs a petition, list, schedule, statement, amendment, pleading, affidavit, or other document which must contain an original wet ink signature or which requires verification under Fed. R. Bankr. P. 1008, or an unsworn declaration as provided in 28 U.S.C. § 1746, the attorney's signature may be in the form of:

(A) A copy, or digitally scanned image, of the original document containing a wet ink signature; or

(B) An image with a signature captured electronically at the time of document creation, or a signature created and verified by use of a special software program for electronic signatures, such as DocuSign or Sign Easy.

(2) When an attorney electronically files a document with a signature in the form described above, it constitutes a certification by the attorney that:

(A) the filing attorney transmitted the entire document to the attorney signatory(ies) for review and signature, and received express authorization from the attorney signatory(ies) to file the document; and

(B) the filing attorney transmitted the entire document to any non-attorney signatory(ies) (or to their counsel) for review and signature, communicated with any non-attorney signatory(ies) who is represented by the filing attorney regarding the substance and purpose of the document, received the signature of any non-attorney signatory(ies), and, at the time of electronic filing, is in possession of an image format, facsimile, or software-assisted signature of the document from the non-attorney signatory(ies).

(c) Duty to Update Contact Information. Each attorney or unrepresented party must notify the clerk in writing of any change of address or telephone number. Any notice mailed to the last address of record of an attorney or an unrepresented party is sufficient notice.

* * *

As amended 12/1/24, 3/17/22 (formerly S.O. 20-2), 3/17/19, 3/17/10, 3/17/09, 3/17/05.

LBR 9013.1
BRIEFS AND MEMORANDA

(a) Contents. All briefs and memoranda filed with the court must contain:

(1) a statement of the nature of the matter before the court;

(2) a concise statement of the facts with each fact supported by reference to the record in the case;

(3) a statement of the question or questions presented; and

(4) the argument, which must refer to all statutes, rules and authorities relied on.

(b) Page Limitations. The arguments and authorities section of briefs or memoranda must not exceed 30 pages absent court order.

(c) Exhibits. The filing party must separately label any exhibits attached to briefs or memoranda.

(d) Additional Copies of Briefs for Court. If a pleading, paper or document is filed electronically, additional copies should not be provided to the court in conventional paper format.

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As amended 3/17/16, 3/17/07, 10/17/05, 3/17/05.

LBR 9013.2
NON-DISPOSITIVE MOTIONS PRACTICE

(a) Hearing Docket. A bankruptcy judge may establish a regularly scheduled docket for non-evidentiary hearing on motions. A motion may be set on a docket by filing with the motion a separate notice of hearing clearly stating the hour, date, and location of the hearing. A certificate of service must be filed for the motion and notice indicating service on required parties. It is movant's responsibility to determine (1) whether a bankruptcy judge has established a docket, and (2) the correct hour, date, and location of the hearing.

(b) Time. Except for good cause, a motion filed less than 14 days before hearing may not be considered by the court. Motions that require more than 14 days' notice under the Code, the Federal Rules of Bankruptcy Procedure or these rules, must comply with this requirement.

(c) Notice with Objection Deadline. Where otherwise allowed by the Code, the Federal Rules of Bankruptcy Procedure, or these rules, a motion may be filed with a separate notice of objection deadline. The notice may provide for hearing on any objection in accordance with this rule.

(d) Waiver of Briefs in Support of Motions. Briefs and memoranda relating to non-dispositive motions are prohibited unless required by the court notwithstanding D. Kan. Rule 7.1(a). *See* D. Kan. LBR 7056.1 and D. Kan. LBR 7012.1.

(e) Preparation of Motions and Orders. Motions and orders must be prepared and submitted in accordance with D. Kan. LBR 9004.1.

* * *

As amended 3/17/10, 10/17/05.

LBR 9013.3
PROOF OF SERVICE

(a) Certificates of Service. Except as the court or rules provide otherwise, an attorney of record or an unrepresented party must provide proof of service of any pleading, motion, or other document required to be served, by filing a certificate. The certificate must either be included in the pleading or document served, or filed separately as soon as possible, and in any event before any action based on the service is requested or taken by the court. The certificate of service must indicate that service was accomplished through the Notice of Electronic Filing for parties and attorneys who are Filing Users and indicate how service was accomplished on any party or attorney who is not a Filing User.

(1) *Contents.* In addition to showing the date, the manner of service, the name and address of the attorney or party served, and the capacity in which such person was served (i.e., as attorney for plaintiff, a particular defendant, trustee, debtor or creditor), the certificate must identify the title of *each* pleading or document served. For example:

> I hereby certify that on this [Date], a true and correct copy of the [Title of Document(s)] was electronically filed with the court using the CM/ECF system, which sent notification to all parties of interest participating in the CM/ECF system.
>
> Further, I certify that copies of the [Title of Document(s)] were forwarded via U.S. Mail, first class, postage prepaid and properly addressed to the following:
> [Names and addresses]

(2) *Identify and Attach Matrix or List.* If the pleading or other document being served is directed to persons on a matrix or other list, the certificate must identify the matrix or list and attorneys or parties must attach the matrix or list to the certificate. For example:

> I hereby certify that on this [Date], a true and correct copy of the [Title of Document(s)] was electronically filed with the court using the CM/ECF system, which sent notification to all parties of interest participating in the CM/ECF system, and was forwarded via U.S. Mail, first class, postage prepaid and properly addressed to the parties' and/or attorneys' addresses on the attached matrix who do not receive notice electronically via CM/ECF.

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As amended 12/1/24, 3/17/20, 3/17/10, 3/17/05.

LBR 9019.2
ALTERNATIVE DISPUTE RESOLUTION

The court's primary ADR procedure is mediation facilitated by a private mediator chosen by the parties. The mediation process is intended to improve communication among the parties and provide the opportunity for greater litigant involvement in the early dispute resolution, with the ultimate goal of securing the just, speedy and inexpensive disposition of civil cases.

(a) General Guidelines for Alternative Dispute Resolution Processes.

(1) Any procedure used to resolve a dispute pending before the United States Bankruptcy Court for the District of Kansas is governed by D. Kan. Rule 16.3, any other rules or guidelines adopted by the United States District Court for the District of Kansas, and this rule.

(2) The judge to whom a case has been assigned may, at the earliest appropriate opportunity, encourage or require the parties and their attorneys to attempt to resolve or settle the dispute using an extrajudicial proceeding, such as mediation, a case settlement or evaluation conference, or another alternative dispute resolution process unless, in the judge's discretion, it is determined that:

(A) it would be futile;

(B) the mediator indicates the case is inappropriate for the process;

(C) the parties agree that a request for procedural action by the court will facilitate settlement; or

(D) in the opinion of the mediator or court official, there is a danger of physical harm to any party connected with the process.

(3) The judge may refer a case for an extrajudicial proceeding to be supervised by any other judge of the district or bankruptcy court, any retired district or bankruptcy judge, or any neutral attorney. If the parties mutually agree on a neutral non-attorney, the judge may refer the case to that person. The person to whom the case is referred will generally be called "mediator" in the balance of this rule.

(4) The mediator will set and convene the first meeting between the participants, and will file with the court a report on the status of the alternative dispute resolution process within 45 days of the initial appointment. As part of the mediation, case settlement, or evaluation conference process, the parties, their attorneys, and the mediator discuss every aspect of the case that bears on its settlement. The mediator will meet privately with each party and the party's attorney to discuss the mediator's evaluation of the case. Except for good cause, it is mandatory that each party have a representative with settlement authority (as defined in D. Kan. Rule 16.3) attend the mediation, case settlement, or evaluation conference process. The court may make this paragraph applicable to any other alternative dispute resolution process.

(5) No written statements or memoranda parties submit to the mediator under this rule will be placed in the court file. The mediator must not communicate to the judge any matter concerning the proceeding except whether the case has settled or that a party or attorney has failed to appear. Fed. R. Evid. 408 governs the admissibility of statements, memoranda, and other communications made during or in connection with the extrajudicial process.

(6) Upon conclusion of the alternative dispute resolution process, either by settlement or by impasse, the mediator will communicate to the court the results of the mediation.

(b) Payment Procedures for Court-Approved Mediation in Bankruptcy Cases.

(1) *Allowable Expenses.* Allowable expenses include the cost of the mediation session at the rate negotiated by counsel and the mediator, plus mileage expenses if the mediator is required to travel, that the party is unable to pay, and that are not otherwise recovered in the action. The mediator's negotiated fee (including mileage) shall be divided equally between the parties unless otherwise agreed to and approved by the court.

(2) *Payment Procedure.* To qualify for payment, the mediation, as well as all expenditures, must be approved in advance by the court. Before incurring any reimbursable expense, the party must:

(A) complete a form, which is available from the clerk; and

(B) secure the requisite prior approval, in writing, by the bankruptcy judge to whom the case is assigned and, when required, by the chief bankruptcy judge.

(3) *Who Must Approve Expenditures.* The presiding judge may approve expenditures that total less than $750, for the entire mediation. The chief judge of the court must approve expenditures that reach or exceed $750.
(4) *Amount of Payment.* The District Court Clerk will pay the mediator such amount as the court approves.
(5) *Repayment.* Any payment from the Bar Fund must be repaid if money is recovered in the settlement, unless waived by the court.

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As amended 3/17/19 (formerly S.O. 17-2), 10/17/05, 3/17/05.

LBR 9027.1
REMOVAL/REMANDS

(a) Procedure and Fees. Fed. R. Bankr. P. 9027 controls the procedure for removal of claims or causes of action in civil actions under 28 U.S.C. § 1452. The filing of a Notice of Removal with the Clerk of Bankruptcy Court requires payment of a filing fee that will not be satisfied by the redundant filing of the motion with the Clerk of the District Court.

(b) Motions to Remand. A motion to remand under Fed. R. Bankr. P. 9027(d) must be served within 21 days following the filing of the notice of removal.

* * *

As amended 3/17/17, 3/17/10

LBR 9029.1
AMENDMENT OF RULES

These rules may be amended as prescribed by Fed. R. Bankr. P. 9029 and Fed. R. Civ. P. 83 by publication with invitation for written comment.

* * *

LBR 9029.2
STANDING ORDERS

By vote of a majority of the judges of the United States Bankruptcy Court for the District of Kansas, the court may issue standing orders addressing administrative and procedural concerns or matters of temporary or local significance.

(a) Procedure. Each standing order, unless expressly made effective until further order, will include the effective date and the expiration date. Standing orders have the same force and effect as other rules of the court. They are numbered consecutively by calendar year (e.g., 14-1) and are cited as D. Kan. Bk. S.O. 14-2.

(b) Notice of Issuance. Public notice of the issuance of a standing order will be given in the manner and for the time determined by the majority of the bankruptcy judges for the District of Kansas. The notice will be given prior to the effective date of the Standing Order, except in emergencies.

* * *

LBR 9029.3
BANKRUPTCY BENCH BAR COMMITTEE

There is a Bankruptcy Bench Bar Committee appointed by the court.

(a) Membership. The committee consists of the chief judge, any other judges who may from time to time be appointed by the court, the United States Attorney or a designated assistant, the U.S. Trustee for Region 20 or a designated assistant, six actively practicing members of the bar of the bankruptcy court, a Chapter 13 Trustee, and a Chapter 7 Trustee, selected by the bankruptcy judges. The bankruptcy judges may also appoint a Chapter 12 Trustee as needed.

(b) Terms of Office. The court will appoint the six actively practicing members of the bar, the Chapter 13 trustee, and the Chapter 7 trustee to serve three year terms to begin on July 1 of each year. Any appointed Chapter 12 trustee will serve a three year term or other lesser term as the court may decide. If a committee member is unable to complete the term of appointment, a replacement member may be appointed to complete the term.

(c) Meetings. The Bench Bar Committee will meet as it determines and as determined by the chief judge.

(d) Duties. The Bench Bar Committee will have general advisory and liaison roles regarding the operation of the court and will, among other things:

(1) provide a forum for the continuous study of the operating procedures of the court;

(2) serve as liaison among the court, its bar and the public;

(3) study, consider, and recommend the adoption, amendment, or rescission of the Rules of Practice of the court; and

(4) make any studies and render any reports and recommendations as the court directs.

* * *

As amended 3/17/19 (formerly S.O. 18-1), 3/17/17, 10/17/05, 3/17/05.

LBR 9036.1
DEBTOR ELECTRONIC BANKRUPTCY NOTIFICATION

(a) DeBN Request Form. Each debtor who files a voluntary petition in bankruptcy on or after August 1, 2015, must file, contemporaneous with the petition, a completed Debtor's Electronic Noticing Request (DeBN Request) on the form provided by the Clerk of the Bankruptcy Court. Each DeBN Request must indicate whether the debtor:

(1) requests creation of a new DeBN account to begin receiving court notices and orders via email pursuant to Fed. R. Bankr. P. 9036, or

(2) declines participation in the DeBN program, or

(3) requests an update to or reactivation of an existing DeBN account, or

(4) requests deactivation of an existing DeBN account.

(b) Email Address. DeBN Requests to create a new DeBN account and DeBN Requests to update or reactivate an existing DeBN account must list a valid and active email address for the debtor. A debtor may list the same email address that was listed on a joint debtor's DeBN Request, however each debtor and each joint debtor must sign and file a separate DeBN Request regardless of whether they share the same email address.

(c) Proof of Identity. All DeBN Requests must be filed with sufficient evidence of the debtor's identity. The debtor provides sufficient evidence of identity when:

(1) the debtor's attorney files the DeBN Request electronically in CM/ECF,

(2) the debtor files the DeBN Request in person at the Clerk's Office and displays a photo identification or other information that would satisfy 11 U.S.C. § 521(h), or

(3) the debtor files the DeBN Request by mail and provides a copy of a photo identification or other information that would satisfy 11 U.S.C. § 521(h).

(d) Clerk Duties. The clerk will act upon the DeBN Request promptly after it is filed. While the debtor's DeBN account is active, the clerk is directed to send court-issued notices and orders via email pursuant to Fed. R. Bankr. P. 9036 whenever the clerk would otherwise be required to send the notice or order by regular mail.

(e) Undeliverable Email Notices. If an attempt to deliver a notice or order via email fails, the debtor's DeBN account may be immediately deactivated. A debtor may reactivate the debtor's DeBN account by submitting a DeBN Request to reactivate an existing account and supplying a valid and active email address.

(f) Scope of DeBN. The existence of an active DeBN account does not authorize any person other than the court to provide notice or service solely by email if notice or service would otherwise be required by regular mail or other means.

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As amended 12/1/24, 3/17/16.

LBR 9037.1
REDACTION

(a) Motion. Any person seeking to redact publicly filed data that is subject to privacy protection under Fed. R. Bankr. P. 9037 should file a motion to redact such data on the grounds that public access is likely to prejudice privacy interests. Motions to redact need not be filed with a notice of objection deadline, but the Court may in its discretion determine that a hearing is appropriate to consider the motion and any related responses.

(b) Contents of Motion. The motion to redact must identify the type of data that is subject to privacy protections (without repeating within the motion the substance of the protected information), identify the document(s) in the record where that data is contained, and explain the reasons why public access is likely to prejudice privacy concerns. Except with respect to omnibus motions to redact filed under subsection (g) of this Rule, each motion to redact must include an appendix containing a properly redacted replacement copy of each document (each in a separate .pdf file) that the motion identifies as containing data subject to privacy protections.

(c) Service. All motions to redact must be served on the debtor, debtor's attorney (if the debtor is represented), the person who disclosed the information to be redacted (unless the disclosing person is the movant), any individual whose personal identifiers have been exposed, the case trustee, and the United States Trustee.

(d) Sealing Publicly Accessible Documents.

(1) Temporary Seal. Pending entry of an order on any motion to redact, the Clerk, upon the filing of a motion using a "Redact per LBR 9037.1" event in CM/ECF, will temporarily seal both the motion to redact and any documents identified in the motion to redact as containing data that is subject to privacy protection. An order resolving the motion to redact will be entered by the Clerk or the Court, and will address any seal that has been imposed.

(2) Authority for Clerk to Issue Sealed Notice. To minimize dissemination of data that may be subject to privacy protection, the Clerk of the Court is authorized, but not required, to issue a sealed notice of noncompliance to any person who files a publicly accessible document that appears to contain data subject to privacy protection.

(e) Redaction Fee. The movant must pay the fee required by the Bankruptcy Court Miscellaneous Fee Schedule for each case affected by the motion to redact, although the Court may waive the redaction fee in appropriate circumstances, upon motion stating good cause filed contemporaneously with the motion to redact.

(f) Closed Cases. Because a case need not be reopened (and a reopening fee need not be paid) if redaction is the only basis for the motion to redact, the movant should not file a motion to reopen the case prior to filing the redaction motion.

(g) Large-Scale Requests. If a movant seeks to redact information in a large number of similarly affected cases, the movant may file an omnibus motion. An omnibus motion must identify each affected case and the type of information to be redacted (without repeating the substance of the protected information), and must be filed in one lead case, with service on all parties identified in subsection (c) of this Rule. If the Court exercises its discretion to hold a hearing on the omnibus motion, the hearing will be noted in advance via a docket entry in each affected case.

(h) Highly Sensitive Documents. Highly sensitive documents are subject to the procedures and requirements published on the court's website.

* * *

As amended 12/1/24 (formerly S.O. 21-1), 3/17/20, 3/17/15.

LBR 9072.1
EXHIBITS

(a) Exhibits to Pleadings or Documents. Bulky or voluminous materials must not be filed in their entirety or incorporated by reference unless the court finds the materials are essential and grants leave to file them. The court may strike any pleading or document filed in violation of this rule.

(b) Preparation of Trial Exhibits. When practical, all documentary exhibits must be prepared for trial as follows:

(1) Attorneys or unrepresented parties must pre-mark original exhibits with exhibit stickers. Plaintiffs or movants must use numerical symbols, e.g., 1, 2, etc. Defendants must use alphabetical symbols, e.g., A through Z, AA, BB, etc. If there is more than one plaintiff and/or defendant in the case, the surname or corporate name of the offering party must be placed on the exhibit sticker for further identification.

(2) The original exhibits (with exhibit stickers) will be used by the witness and must be delivered to the clerk. Two copies of all exhibits must be delivered to chambers. One copy of all exhibits must be delivered to each party participating in the trial or evidentiary hearing. Unless otherwise directed by the court, all exhibits must be delivered as set forth above at least three (3) full business days prior to the scheduled trial or evidentiary hearing date.

(3) An exhibit cover sheet in substantial compliance with the form "Exhibit Sheet" prescribed by the clerk and available on the court's website must be prepared and included with each set of exhibits submitted to the clerk, chambers, and other parties.

(4) Unless otherwise directed by the court, the exhibit cover sheet and exhibits shall be submitted in three-ring notebooks with each exhibit separated by dividers or tabs corresponding to the exhibit number or letter. All exhibits must be clearly legible and multiple-page exhibits must be paginated or bates numbered.

(5) The court may exclude any exhibit offered in a hearing or trial that is not clearly legible or does not comply with this Rule.

(c) Withdrawal of Exhibits. Exhibits introduced into evidence may be withdrawn from the custody of the clerk with permission of the clerk or upon order of the court. The clerk may destroy or dispose of any exhibit not withdrawn after final disposition of the proceeding.

(d) Electronic Filing. Trial exhibits must not be filed electronically unless the court orders otherwise.

* * *

As amended 3/17/19.

LBR 9074.1
JOURNAL ENTRIES AND ORDERS

(a) Preparation of Journal Entry or Order. An attorney must upload within 14 days a journal entry or order:

(1) when directed by the court to prepare the journal entry or order reflecting a judgment, decision, or ruling; or

(2) when the parties announce in court that a pending matter has been settled by agreement.

(**b) Journal Entry or Order Submitted Without Approval of All Attorneys; Proof of Service.** If approval of the Journal Entry referenced in subsection (a) cannot be obtained after reasonable effort, the attorney may upload the journal entry or order without the approval of all other attorneys involved in the matter. The phrase "order submitted pursuant to D. Kan. LBR 9074.1" must appear above the signature line of any attorney whose signature on the journal entry or order has not been approved.

(1) *Service required.* The attorney uploading a journal entry or order not approved by all attorneys must, on the same date, serve copies of the order on all other attorneys involved and on any unrepresented parties. Attorneys must establish proof of service by filing a certificate of service in the manner prescribed by D. Kan. LBR 9013.3. The attorney must attach the uploaded journal entry or order as an exhibit to the certificate of service.

(2) *Objections to entry of journal entry or order*. Attorneys and unrepresented parties must file any objections to entry of the journal entry or order within 14 days after service of the journal entry or order. The court may enter the journal entry or order if no timely objection is filed and served. The court will settle any objections to the journal entry or order.

(c) Inapplicability to Chapter 13 Trustee. The procedure in subsection (b) may not be used in lieu of obtaining the approval of a Chapter 13 Trustee to any journal entry or order in any Chapter 13 case. If a Chapter 13 Trustee declines to approve any order, the party seeking approval of the order may file a motion requesting the court approve the order without the Chapter 13 Trustee's approval.

(d) Journal Entry or Order Submitted With Approval of All Attorneys or Parties. An attorney may upload a journal entry or order without serving copies when every attorney or unrepresented party involved in the matter has previously authorized their signatures to the specific pleading. The court may enter the journal entry or order on receipt.

* * *

As amended 3/17/10, 10/17/05, 3/17/05.

STANDING ORDERS

AT THE TIME OF PUBLICATION OF THESE RULES, THE FOLLOWING STANDING ORDERS WERE IN EFFECT.

FOR ADDITIONS, MODIFICATIONS, OR DELETIONS TO THESE ORDERS, CONSULT THE COURT'S WEB PAGE:
www.ksb.uscourts.gov.

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS
STANDING ORDER NO. 11-1
ORDER AUTHORIZING CHAPTER 7 TRUSTEES TO PAY BANK SERVICE CHARGES AND FEES INCURRED BY CHAPTER 7 ESTATE ACCOUNTS

The Bench Bar Committee, as well as the United States Trustee for Region 20, has recommended the adoption of this Order, because banks are no longer willing to waive fees for maintaining a Chapter 7 estate account. Accordingly, in consideration of the foregoing, and pursuant to D. Kan. L.B.R. 9029.2, the Court orders that

(1) Panel trustees administering cases under Chapter 7 of the Bankruptcy Code in the District of Kansas are authorized to incur and pay any actual, necessary expense as contemplated by 11 U.S.C. § 330, for bank fees and charges directly related to the administration of estate accounts;

(2) The Court shall retain authority to review and approve such expenses during the administration of the case.

This Standing Order is effective for all Chapter 7 cases pending on or after July 1, 2011, and it shall remain in effect until further order of the Court.

IT IS SO ORDERED.

Dated this 30th day of June, 2011.

s/ Robert E. Nugent
ROBERT E. NUGENT
Chief Judge

s/ Janice Miller Karlin
JANICE MILLER KARLIN
Judge

s/ Dale L. Somers
DALE L. SOMERS
Judge

s/ Robert D. Berger
ROBERT D. BERGER
Judge

* * *

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS
STANDING ORDER NO. 14-1
ORDER RENDERING D. KAN. RULE 83.5.8 LIMITED SCOPE REPRESENTATION INAPPLICABLE TO BANKRUPTCY COURT

Having consulted with the Bench and Bar Committee, the Judges of the United States Bankruptcy Court recognize that the roles and duties of attorneys representing debtors, creditors, and other parties in interest in bankruptcy cases and proceedings frequently differ from those in civil and criminal proceedings in the United States District Court. Attorneys practicing in this Court routinely and permissibly limit the scope of their representation in certain situations, such as adversary proceedings and appearances for specific purposes. Therefore,

IT IS HEREBY ORDERED that D. Kan. Rule 83.5.8, except to the extent ordered below, shall not apply in the United States Bankruptcy Court for the District of Kansas without further order of the Court. The purpose of this Standing Order is to preserve the status quo of bankruptcy practice, without adding the additional pleadings required by D. Kan. Rule 83.5.8.

IT IS FURTHER ORDERED that any attorney preparing a pleading, motion or other paper for a specific case or matter in the United States Bankruptcy Court for the District of Kansas must enter an appearance and sign the document.

IT IS FURTHER ORDERED that no provision of this Standing Order in any way negates or avoids a lawyer's duty to abide by the Rules of Professional Conduct and any standards of practice established by this Court.

IT IS FURTHER ORDERED that this Standing Order shall become effective March 17, 2014, and shall remain in effect until further order of the Court.

IT IS SO ORDERED.

Dated this 17th day of March, 2014.

s/ Robert E. Nugent
ROBERT E. NUGENT
Chief Judge

s/ Janice Miller Karlin
JANICE MILLER KARLIN
Judge

s/ Dale L. Somers
DALE L. SOMERS
Judge

s/ Robert D. Berger
ROBERT D. BERGER
Judge

* * *

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS
STANDING ORDER NO. 16-1
ORDER GOVERNING DEPOSIT AND INVESTMENT OF REGISTRY FUNDS

On this date the Court determined that it is necessary to amend its local procedures governing the deposit, investment, and tax administration of funds in the Court's Registry, *(see* Bankr. D. Kan. S.O. 15-3):

IT IS THEREFORE ORDERED that the following shall govern the receipt, deposit and investment of registry funds:

I. Receipt of Funds

A. No money shall be sent to the Court or its officers for deposit in the Court's registry without a court order signed by the presiding judge in the case or proceeding.

B. The party making the deposit or transferring funds to the Court's registry shall serve the order permitting the deposit or transfer on the Clerk of Court by delivering or mailing a copy of the order to the Administrative Office of the Clerk of the Bankruptcy Court for the District of Kansas at 167 U.S. Courthouse, 401 North Market, Wichita, Kansas 67202-2011, or by sending a copy to the email address of the court's Finance Department provided by the Clerk of Court on the court's website.

C. Unless provided for elsewhere in this Order, all monies ordered to be paid to the Court or received by its officers in any case pending or adjudicated shall be deposited with the Treasurer of the United States in the name and to the credit of this Court pursuant to 28 U.S.C. § 2041 through depositories designated by the Treasury to accept such deposit on its behalf.

II. Investment of Registry Funds

A. Where, by order of the Court, funds on deposit with the Court are to be placed in some form of interest-bearing account or invested in a court-approved, interest-bearing instrument in accordance with Fed. R. Civ. P. 67, the Court Registry Investment System ("CRIS"), administered by the Administrative Office of the United States Courts under 28 U.S.C. § 2045, shall be the only investment mechanism authorized.

B. Interpleader funds deposited under 28 U.S.C. § 1335 meet the Internal Revenue Service ("IRS") definition of a "Disputed Ownership Fund" ("DOF"), a taxable entity that requires tax administration. Unless otherwise ordered by the court, interpleader funds shall be deposited in the DOF established within the CRIS and administered by the Administrative Office of the United States Courts, which shall be responsible for meeting all DOF tax administration requirements.

C. The Director of Administrative Office of the United States Courts is designated as custodian for all CRIS funds. The Director or the Director's designee shall perform the duties of custodian. Funds held in the CRIS remain subject to the control and jurisdiction of the Court.

D. Money from each case deposited in the CRIS shall be pooled together with those on deposit with Treasury to the credit of other courts in the CRIS and used to purchase Government Account Series securities through the Bureau of Public Debt, which will be held at Treasury, in an account in the name and to the credit of the Director of Administrative Office of the United States Courts. The pooled funds will be invested in accordance with the principles of the CRIS Investment Policy as approved by the Registry Monitoring Group.

E. An account will be established in the CRIS Liquidity Fund titled in the name of the case giving rise to the deposit invested in the fund. Income generated from fund investments will be distributed to each case based on the ratio each account's principal and earnings has to the aggregate principal and income total in the fund after the CRIS fee has been applied. Reports showing the interest earned and the principal amounts contributed in each case will be prepared and distributed to each court participating in the CRIS and made available to litigants and/or their counsel.

F. For each interpleader case, an account shall be established in the CRIS Disputed Ownership Fund, titled in the name of the case giving rise to the deposit invested in the fund. Income generated from fund investments will be distributed to each case after the DOF fee has been applied and tax withholdings have been deducted from the fund. Reports showing the interest earned and the principal amounts contributed in each case will be available through the FedInvest/CMS application for each court participating in the CRIS and made available to litigants and/or their counsel. On appointment of an administrator authorized to incur expenses on behalf of the DOF in a case, the case DOF funds should be transferred to another investment account as directed by court order.

III. Fees and Taxes

A. The custodian is authorized and directed by this Order to deduct the CRIS fee of an annualized 10 basis points on assets on deposit for all CRIS funds, excluding the case funds held in the DOF, for the management of investments in the CRIS. According to the Court's Miscellaneous Fee Schedule, the CRIS fee is assessed from interest earnings to the pool before a pro rata distribution of earnings is made to court cases.

B. The custodian is authorized and directed by this Order to deduct the DOF fee of an annualized 20 basis points on assets on deposit in the DOF for management of investments and tax administration. According to the Court's Miscellaneous Fee Schedule, the DOF fee is assessed from interest earnings to the pool before a pro rata distribution of earnings is made to court cases. The custodian is further authorized and directed by this Order to withhold and pay federal taxes due on behalf of the DOF.

IV. Transition From Former Investment Procedure

A. The Clerk of Court is further directed to develop a systematic method of redemption of all existing interest-bearing investments and their transfer to the CRIS.

B. Deposits to the CRIS DOF will not be transferred from any existing CRIS funds. Only new deposits pursuant to 28 U.S.C. § 1335 from the effective date of this order will be placed in the CRIS DOF.

C. Parties not wishing to transfer certain existing registry deposits into the CRIS may seek leave to transfer them to the litigants or their designees on proper motion and approval of the judge assigned to the specific case.

D. This Order is generally effective on the date of entry, but DOF provisions will become effective the date the CRIS DOF begins to accept deposits. This order supersedes and abrogates Bankr. D. Kan. S.O. 15-3 and all other prior orders of this Court regarding the deposit and investment of registry funds.

IT IS SO ORDERED.

Dated this 12th day of October, 2016.

s/Janice Miller Karlin
JANICE MILLER KARLIN
Chief Judge

s/Robert E. Nugent
ROBERT E. NUGENT
Judge

s/Dale L. Somers
DALE L. SOMERS
Judge

s/Robert D. Berger
ROBERT D. BERGER
Judge

* * *

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS
STANDING ORDER NO. 22-2
ORDER ABROGATING INTERIM RULES RESPONSIVE TO THE SMALL BUSINESS REORGANIZATION ACT OF 2019 AND THE CORONAVIRUS AID, RELIEF AND ECONOMIC SECURITY ACT

On August 23, 2019, the Small Business Reorganization Act of 2019, P.L. 116-54 ("SBRA") was enacted with an effective date of February 19, 2020. In response to the SBRA, the Advisory Committee on Bankruptcy Rules recommended that certain changes to the Federal Rules of Bankruptcy Procedure were necessary to implement the SBRA. Because it can take three years or more to change federal bankruptcy rules under the procedures established by the Rules Enabling Act, 28 U.S.C. §§ 2071-77, there was insufficient time to make the recommended federal rule changes before the effective date of the SBRA. Therefore, the Advisory Committee on Bankruptcy Rules recommended that the Court adopt interim SBRA rules locally until the federal rule process could be completed.

This Court reviewed the interim SBRA rules recommended by the Advisory Committee and found that they should be adopted locally until the Federal Rules of Bankruptcy Procedure were amended. Therefore, the Court issued Standing Order 20-1 effective February 19, 2020.

On March 27, 2020, the Coronavirus Aid, Relief and Economic Security Act ("CARES Act") was signed into law with an immediate effective date. The CARES Act temporarily amended certain provisions of the Bankruptcy Code, including the definition of "debtor" for purposes of determining eligibility to proceed under subchapter V of chapter 11. The Advisory Committee on Bankruptcy Rules recommended further amendments to Interim Rule 1020 to conform to those changes. On April 25, 2020, this Court adopted those amendments when it issued Standing Order 20-4.

Effective December 1, 2022, amendments were made to Federal Rule of Bankruptcy Procedure 1007(b)(5); Rule 1007(h); Rule 1020; Rule 2009; Rule 2012(a); Rule 2015; Rule 3010(b); Rule 3011; Rule 3014; Rule 3016; Rule 3017.1(a); Rule 3018(a); and Rule 3019; and new Rule 3017.2 was adopted.

The adoption of those national rules eliminates the need for local versions of those rules, with one exception. On June 21, 2022, the Bankruptcy Threshold Adjustment and Technical Corrections Act, Pub. L. 117-151, temporarily increased the debt threshold in subchapter V cases by amending the definition of "debtor" in 11 U.S.C. § 1182(1) for additional two years. Therefore, the temporary amendments adopted in Interim LBR 1020.1 remain necessary.

IT IS THEREFORE ORDERED that effective December 1, 2022, the Court abrogates Standing Order 20-4; 1007(b)(5).1; LBR 1007(h).1; LBR 2009.1; LBR 2012(a).1; LBR 2015.1; LBR 3010(b).1; LBR 3011.1; LBR 3014.1; LBR 3016.1; LBR 3017.1(a).1; LBR 3017.2.1; LBR 3018(a).1; and LBR 3019(c).1.

IT IS FURTHER ORDERED that the Court temporarily extends the effective period of Interim LBR 1020.1, which states:

LBR 1020.1

CHAPTER 11 REORGANIZATION CASE FOR SMALL BUSINESS DEBTORS OR DEBTORS UNDER SUBCHAPTER V

Federal Rule of Bankruptcy Procedure 1020 applies in the Bankruptcy Court for the District of Kansas but, effective April 25, 2020, is amended on an interim basis to state:

(a) DEBTOR DESIGNATION. In a voluntary chapter 11 case, the debtor shall state in the petition whether the debtor is a small business debtor or a debtor as defined in § 1182(1) of the Code and, if the latter, whether the debtor elects to have subchapter V of chapter 11 apply. In an involuntary chapter 11 case, the debtor shall file within 14 days after entry of the order for relief a statement as to whether the debtor is a small business debtor or a debtor as defined in § 1182(1) of the Code and, if the latter, whether the debtor elects to have subchapter V of chapter 11 apply. The status of the case as a small business case or a case under subchapter V of chapter 11 shall be in accordance with the debtor's statement under this subdivision, unless and until the court enters an order finding that the debtor's statement is incorrect.

(b) OBJECTING TO DESIGNATION. The United States trustee or a party in interest may file an objection to the debtor's statement under subdivision (a) no later than 30 days after the conclusion of the meeting of creditors held under § 341(a) of the Code, or within 30 days after any amendment to the statement, whichever is later.

(c) PROCEDURE FOR OBJECTION OR DETERMINATION. Any objection or request for a determination under this rule shall be governed by Rule 9014 and served on: the debtor; the debtor's attorney; the United States trustee; the trustee; the creditors included on the list filed under Rule 1007(d) or, if a committee has been appointed under § 1102(a)(3), the committee or its authorized agent; and any other entity as the court directs.

* * *

As amended 4/25/20 (*see* S.O. 20-4 and S.O. 22-2), 2/19/20 (*see* S.O. 20-1).

IT IS SO ORDERED this 1st day of December, 2022.

s/ Dale L. Somers
DALE L. SOMERS
Chief Judge

s/ Robert D. Berger
ROBERT D. BERGER
Judge

s/ Mitchell L. Herren
MITCHELL L. HERREN
Judge

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS
STANDING ORDER NO. 24-2
ORDER GOVERNING CASE MANAGEMENT OF
CHAPTER 7 AND CHAPTER 13 CASES

IT IS ORDERED that if a case is filed under chapter 7 or chapter 13 on or after December 31, 2023, and if the individual debtor's residence (or, if the debtor is a corporation, partnership, or other business, the business debtor's principal place of business) is in Kansas in:

(a) Wyandotte County or Johnson County, the case shall be filed in and assigned to the Kansas City Divisional Office,

(b) Shawnee County or Douglas County, the case shall be filed in and assigned to the Topeka Divisional Office, or

(c) Sedgwick County or Butler County, the case shall be filed in and assigned to the Wichita Divisional Office.

If individual joint debtors reside separately in two of the counties listed above, the case shall be filed in and assigned to a Divisional Office based on the residence of one of the joint debtors.

Except as otherwise provided above, the case may be filed in any Divisional Office.

This order is effective from July 1, 2024, through June 30, 2025, and expires on July 1, 2025. Standing Order 23-1 governs cases filed from December 31, 2023, through and including June 30, 2024. Standing Order 23-1 shall then be abrogated effective July 1, 2024.

IT IS SO ORDERED this 6th day of June 2024.

s/Dale L. Somers
DALE L. SOMERS
Chief Judge

s/Robert D. Berger
ROBERT D. BERGER
Judge

s/Mitchell L. Herren
MITCHELL L. HERREN
Judge

OFFICIAL LOCAL FORMS

FOR ADDITIONAL LOCAL FORMS
SEE THE COURT'S WEBSITE AT https://www.ksb.uscourts.gov/forms

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS

In re:

Case No.
Chapter

Debtor(s).

DECLARATION REGARDING PAYMENT ADVICES
OR EVIDENCE OF PAYMENT UNDER 11 U.S.C. § 521(a)(1)(B)(iv)

Debtor:
Mark statement that applies to you:

☐ I have not been employed by any employer within the 60 days before the date of the filing of the petition.

☐ I have received payment advices or other evidence of payment within 60 days before the date I filed my bankruptcy petition from any employer, and they are attached, except:

_____

_____

☐ I was employed by an employer within 60 days before the date I filed my bankruptcy petition, but I have not received payment advices or other evidence of payment because:

_____

_____

(Explanation)

Joint Debtor (if applicable):
Mark statement that applies to you:

☐ I have not been employed by any employer within the 60 days before the date of the filing of the petition.

☐ I have received payment advices or other evidence of payment within 60 days before the date I filed my bankruptcy petition from any employer, and they are attached, except:

_____

_____

☐ I was employed by an employer within 60 days before the date I filed my bankruptcy petition, but I have not received payment advices or other evidence of payment because:

_____

_____

(Explanation)

I declare (or certify, verify, or state) under penalty of perjury that the above is true and correct.

_____ _____
Signature of Debtor Date

_____ _____
Signature of Joint Debtor (if applicable) Date

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS

In re:

Case No.
Chapter

_____ Debtor(s).

NOTICE OF AMENDMENT OF SCHEDULES D, E/F, G OR H (ADDITION OF CREDITOR(S))

You are hereby notified that the debtor(s) has filed the attached amended schedule(s) of debt to include the creditor listed below. Debtor's counsel must also separately provide you a copy of the debtor(s)' full Social Security Number.

1. Creditor (name and address): _____
2. Claim (amount owed, nature of claim, date incurred): _____
3. This claim has been scheduled as (mark one):
   ☐ secured ☐ priority ☐ general unsecured.
4. Trustee, if one has been appointed: _____
5. Original deadline for filing proofs of claim: _____
6. Deadline for filing complaints objecting to discharge of specific debts or of debtor under 11 U.S.C. § 523, 727: _____ [Date].
   or
   ☐ This claim was added to the schedules after the deadline for filing complaints stated above.

Check applicable provision(s) below:

☐ This is a no-asset case. It is unnecessary to file a claim now. If it is determined there are assets to distribute, creditors will receive a notice setting a deadline to file claims.
☐ This claim was added to the schedules after the deadline for filing claims stated above.
☐ This is a Chapter 13 case. You have until the bar date to file your proof of claim.
☐ A plan in this case was confirmed on: _____ [Date].
☐ No plan has been confirmed in this case, but a confirmation hearing is currently set for _____ [Date] at _____ [Location]. Since the amendment was filed too late to give notice, you may file an objection to either confirmation of the plan or the amendment to the schedules by _____ [Date]. If an objection is timely filed, a non-evidentiary preliminary hearing will be scheduled, and notice provided by the Clerk upon expiration of the deadline date.
☐ The final order of discharge was entered on _____ [Date] and a copy is attached.

Certificate of Service: I certify the above notice and a separate notice of the full Social Security Number of the debtor(s) was served on the above-named creditor by first class, postage prepaid mail, on _____ [Date].

_____
Attorney Signature
Attorney Name
Bar Number
Firm Address
City, State ZIP
Fax
Email

_____
Debtor Signature (Optional if signed by counsel)

_____
Joint Debtor Signature (Optional if signed by counsel)

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS

In re:

Case No.
Chapter

_____ Debtor(s).

NOTICE OF RULE 2004 EXAMINATION

_____, by the undersigned counsel, will examine _____ under oath on _____at _____ ___m. at _____. The examination may continue from day to day until completed.

The examination is pursuant to Bankruptcy Rule 2004 and D. Kan. LBR 2004.1, and will be taken before an officer authorized to record the testimony. The scope of the examination shall be as described in Bankruptcy Rule 2004 *[as further described in the attached areas of inquiry].* Pursuant to D. Kan. Local Rule 2004.1, no order shall be necessary. *[If the examination is of a witness other than the debtor, Form B2540 "Subpoena for Rule 2004 Examination" is included with this notice.]*

[The examinee is further requested to bring to the examination all of the documents described on the attached schedule.]

[Pursuant to D. Kan. LBR 2004.1(i), in addition to stenographic means, the examination will also be recorded by videographic means for use as evidence in the captioned cases.]

Undersigned counsel hereby certifies that he or she *[describe efforts taken]* attempted to contact the examinee, or if represented, counsel for the examinee prior to filing this Notice in order to obtain a mutually agreeable date and time for the examination.

s/_____
Attorney Signature
Attorney Name
Bar Number
Firm Address
City, State ZIP
Fax
Email

I CERTIFY that a true copy of this notice was served on the examinee, attorney for examinee, the debtor, the attorney for the debtor, the trustee and *[indicate name of party served, manner of service and date of service].*

s/_____
Signature of Attorney for Examining Party

UNITED STATES BANKRUPTCY COURT

_____ District of _____

In re _____ Case No. _____
Debtor

Chapter _____

SUBPOENA FOR RULE 2004 EXAMINATION

To: _____
(Name of person to whom the subpoena is directed)

☐ *Testimony:* **YOU ARE COMMANDED** to appear at the time, date, and place set forth below to testify at an examination under Rule 2004, Federal Rules of Bankruptcy Procedure. A copy of the court order authorizing the examination is attached.

PLACE	DATE AND TIME

The examination will be recorded by this method: _____

☐ *Production:* You, or your representatives, must also bring with you to the examination the following documents, electronically stored information, or objects, and must permit inspection, copying, testing, or sampling of the material:

The following provisions of Fed. R. Civ. P. 45, made applicable in bankruptcy cases by Fed. R. Bankr. P. 9016, are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and 45(g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: _____

CLERK OF COURT

OR

_____ _____
Signature of Clerk or Deputy Clerk *Attorney's signature*

The name, address, email address, and telephone number of the attorney representing *(name of party)* _____ , who issues or requests this subpoena, are:

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things, or the inspection of premises before trial, a notice and a copy of this subpoena must be served on each party before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 45.)

I received this subpoena for *(name of individual and title, if any)*: _____
on *(date)* _____ .

☐ I served the subpoena by delivering a copy to the named person as follows: _____
_____
_____ on (*date*) _____ ; or

☐ I returned the subpoena unexecuted because: _____
_____

Unless the subpoena was issued on behalf of the United States, or one of its officers or agents, I have also tendered to the witness the fees for one day's attendance, and the mileage allowed by law, in the amount of $ _____ .

My fees are $ _____ for travel and $_____ for services, for a total of $_____ .

I declare under penalty of perjury that this information is true and correct.

Date: _____

_____
Server's signature

_____
Printed name and title

_____
Server's address

Additional information concerning attempted service, etc.:

Federal Rule of Civil Procedure 45(c), (d), (e), and (g) (Effective 12/1/13)
(made applicable in bankruptcy cases by Rule 9016, Federal Rules of Bankruptcy Procedure)

(c) Place of compliance.

(1) For a Trial, Hearing, or Deposition. A subpoena may command a person to attend a trial, hearing, or deposition only as follows:

(A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or

(B) within the state where the person resides, is employed, or regularly transacts business in person, if the person

(i) is a party or a party's officer; or

(ii) is commanded to attend a trial and would not incur substantial expense.

(2) For Other Discovery. A subpoena may command:

(A) production of documents, or electronically stored information, or things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and

(B) inspection of premises, at the premises to be inspected.

(d) Protecting a Person Subject to a Subpoena; Enforcement.

(1) Avoiding Undue Burden or Expense; Sanctions. A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction — which may include lost earnings and reasonable attorney's fees — on a party or attorney who fails to comply.

(2) Command to Produce Materials or Permit Inspection.

(A) Appearance Not Required. A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.

(B) Objections. A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing or sampling any or all of the materials or to inspecting the premises — or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:

(i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.

(ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

(3) Quashing or Modifying a Subpoena.

(A) When Required. On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:

(i) fails to allow a reasonable time to comply;

(ii) requires a person to comply beyond the geographical limits specified in Rule 45(c);

(iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or

(iv) subjects a person to undue burden.

(B) When Permitted. To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:

(i) disclosing a trade secret or other confidential research, development, or commercial information; or

(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.

(C) Specifying Conditions as an Alternative. In the circumstances described in Rule 45(d)(3)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:

(i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and

(ii) ensures that the subpoenaed person will be reasonably compensated.

(e) Duties in Responding to a Subpoena.

(1) Producing Documents or Electronically Stored Information. These procedures apply to producing documents or electronically stored information:

(A) Documents. A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.

(B) Form for Producing Electronically Stored Information Not Specified. If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.

(C) Electronically Stored Information Produced in Only One Form. The person responding need not produce the same electronically stored information in more than one form.

(D) Inaccessible Electronically Stored Information. The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

(2) Claiming Privilege or Protection.

(A) Information Withheld. A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:

(i) expressly make the claim; and

(ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.

(B) Information Produced. If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

…

(g) Contempt. The court for the district where compliance is required – and also, after a motion is transferred, the issuing court – may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

For access to subpoena materials, see Fed. R. Civ. P. 45(a) Committee Note (2013)

MORTGAGE CREDITOR CHECKLIST[i]

(FILE WITH TRUSTEE ONLY—DO NOT FILE WITH THE COURT)

Debtor Name(s):_____ Bk Case #: _____

Property Address: _____

Daytime Phone: (_____)_____ Evening Phone: (_____)_____

Attorney name (if represented): _____

THE FOLLOWING INFORMATION MUST BE COMPLETED FOR ALL MORTGAGES. PLEASE BE SURE TO COMPLETE THIS FORM TO THE BEST OF YOUR ABILITY AND ATTACH THE MOST RECENT PAYMENT COUPON OR STATEMENT THAT WAS SUPPLIED BY YOUR MORTGAGE CREDITOR(S).

Creditor Name: _____

Account #: _____

Payment Address: _____
Street Address

_____
City State ZIP

Creditor Phone Number: (if known) (_____)_____

Regular Monthly Payment Amount: $_____ Current Interest Rate: _____

Monthly Payment Due Date: _____

Date Payment Late: _____ Monthly Late Charge Amount: $_____

Is this a variable interest rate loan? ☐ Yes ☐ No

If yes, when is the next anticipated adjustment date? _____

Are property taxes included in the monthly payment? ☐ Yes ☐ No

Is insurance included in the monthly payment? ☐ Yes ☐ No

Is the loan due in full and payable in less than 5 years? ☐ Yes ☐ No

If yes, date due: _____

[i] File one of these forms with the Trustee for each creditor to whom you granted a mortgage on your home

AUTHORIZATION TO RELEASE INFORMATION TO THE TRUSTEE REGARDING SECURED CLAIMS BEING PAID BY THE TRUSTEE

(FILE WITH TRUSTEE ONLY—DO NOT FILE WITH THE COURT)

Debtor Name(s): _____ Case #:_____

The debtor(s) in the above captioned bankruptcy case do/does hereby authorize any and all lien holder(s) on real property of the bankruptcy estate to release information to the Standing Chapter 13 Trustee in this bankruptcy filing.

The information to be released includes, but is not limited to, the amount of the post-petition monthly installment, the annual interest rate and its type, the loan balance, escrow accounts, amount of the contractual late charge and the mailing address for payments. This information will only be used by the Trustee and his/her staff in the administration of the bankruptcy estate and may be included in motions before the Court.

_____ _____

Debtor Signature Date

_____ _____

Joint Debtor Signature (if applicable) Date

ADDENDUM TO CHAPTER 13 PROOF OF CLAIM FOR RESIDENTIAL HOME MORTGAGE DEBT PAID THROUGH CHAPTER 13 TRUSTEE

I. Creditor Information

Loan No:

Creditor Name: _____

Servicer Name: _____

Address: _____

Contact Person: _____

Tel No: _____

Fax No: _____

Email: _____

Payments should be made payable to: _____

Address to which payments are to be sent: _____

Creditor Attorney Name: _____

Address: _____

Contact: _____

Tel No: _____

Fax No: _____

Email: _____

II. Loan Information

Type of Loan and rate as of petition date: _____

Fixed Rate: _____ % (State interest rate as of date of petition)

Adjustable Rate: _____ % (State interest rate as of date of petition)

Last Adjustment Date: _____

Next Adjustment Date: _____

Date of month payment due: _____

Date of month payment considered late under note: _____

Amount of late fee: $_____

Post-petition payments

Principal & Interest: $_____

Taxes: $_____

Insurance: $_____

Other:_____ $_____

Other: _____ $_____

Total post-petition payment: $_____

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS

In re:

Case No.
Chapter

_____ Debtor(s).

NOTICE OF TRANSFER OF SERVICING AND CLAIM

PLEASE TAKE NOTICE that the servicing of the mortgage loan represented by the Proof of Claim #_____ [Claim no.] filed on _____ [Date] in the amount of $_____, by _____ [Transferor name], Transferor, with the address of _____ _____ [City, State, ZIP] has been transferred to _____ [Transferee name], Transferee (Loan No. _____[Loan no.]).

Chapter 13 Trustee payments and regular monthly payments should be sent to _____ [Transferee servicer name], with the address of _____ [City, State, ZIP].

_____ s/_____
Date

CERTIFICATE OF SERVICE

Creditor _____[Transferee name], certifies that it has served a copy of this Notice by ordinary U.S. mail or served electronically through the Court's ECF System on this _____ day of _____, 20_____:

Debtor(s):

Debtor's Attorney:

Trustee:

Transferor:

U.S. Trustee:

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF KANSAS

In re:

Case No.
Chapter

_____ Debtor(s).

NOTICE OF TRANSFER OF CLAIM (Other than for Security)

A Proof of Claim has been filed in this case. The transferee hereby evidences, by way of documentation attached hereto, that the referenced claim has been transferred, other than the security, as is referenced in this Notice. This Notice must be used when any of the original payment information in a Proof of Claim changes. However, it should not be used for an amendment to the amount of the claim. For changes in the amount of the claim or the arrears only, an Amended Proof of Claim must be filed.

Original Claim Information:

Name of Claimant: _____

Name of Payee [if different from claimant]: _____

Payment Address: _____

Last 4 digits of Account #: _____

Claim # on Court's Registry [Or date of entry of Order allowing claim]: _____

Amount of Claim: $_____ [Total debt] $_____ [Arrears] $_____

Transferee Information:

Name of Claimant: _____

Name of Payee [if different from claimant]: _____

Payment Address: _____

Name/Address for Notices [if different from payment address]:

_____

_____

Phone #: (_____) _____

Last 4 digits of Account #: _____

I, _____, do hereby declare under penalty of perjury that the information provided in this Notice is true and accurate to the best of my knowledge. I hereby declare that a copy of this Notice has been mailed to the Transferor and that proof of the transfer is annexed thereto.

By: _____ _____
Signature of Transferee/Agent of Transferee Date

CERTIFICATE OF SERVICE

Creditor _____[Transferee name], certifies that it has served a copy of this Notice by ordinary U.S. mail or served electronically through the Court's ECF System on this _____ day of _____, 20_____:

Debtor(s):

Debtor's Attorney:

Trustee:

Transferor:

U.S. Trustee:

UNITED STATES BANKRUPTCY COURT FOR THE DISTRICT OF KANSAS
OFFICIAL FORM CHAPTER 13 PLAN

Debtor 1: Debtor 1 Name
Debtor 2: Debtor 2 Name
Case Number (if known):

☐ Check if this is an amended plan
Amended Plan #

CHAPTER 13 PLAN

Section 1: NOTICES

Throughout this plan, the singular word "debtor" means both debtors if this is a joint case.

Creditors: Your rights may be affected by this plan. Your claim may be reduced, modified, or eliminated.

You should read this plan carefully and discuss it with your attorney if you have one. If you do not have an attorney, you may wish to consult one.

If you oppose the plan's treatment of your claim or any provision of this plan, you or your attorney must file an objection to confirmation at least 7 days before the date set for the hearing on confirmation. The Bankruptcy Court may confirm this plan without further notice if no objection to confirmation is filed. **You must file a timely proof of claim in order to be paid by the Chapter 13 Trustee ("Trustee") under any plan.**

Debtor: You must check one box on each line to state whether the plan includes any of the following items. For any line, if the "Not Included" box is checked, neither box is checked, or both boxes are checked, and a provision of that type is included in the plan, the provision will be ineffective.

A limit on the amount of a secured claim, set out in Section 10 or 11, which may result in a partial payment or no payment at all to the secured creditor	☐ Included	☐ Not Included
Non-Standard Provisions (see Section 18)	☐ Included	☐ Not Included

Section 2: EFFECT OF CONFIRMATION

Confirmation of the plan will be deemed a finding by the Bankruptcy Court that debtor has complied with all of the applicable sections of 11 U.S.C. §§ 1322 and 1325 and that debtor has fulfilled all pre-confirmation obligations under 11 U.S.C. § 521. Failure to timely object to confirmation of the plan is deemed consent to the plan. Confirmation of a plan is without prejudice to and does not affect the standing and ability of a party to object to a proof of claim, regardless of whether the proof of claim is filed before or after confirmation of the plan. All future statutory references are to the Bankruptcy Code.

Default of the debtor to make direct payments to a creditor, with the exception of domestic support obligations, shall not bar entry of discharge or completion of the case.

Section 3: PLAN TERMS

3.1 Debtor's annualized current monthly income for debtor's state and household size:

☐ is below the median and the "Applicable Commitment Period" is not less than 3 years. For cause, the plan period may extend beyond 3 years, to the extent necessary to make the payments specified in this plan, but no longer than 5 years.

☐ is above the median and the "Applicable Commitment Period" is 5 years. For the above the median debtor, plan payments include the following total projected disposable income paid pursuant to Official Form 122C-2 (include any Part 3 change): $_____.

3.2 Plan payments will be $_____ per month.

3.3 Plan payments shall be made by:

☐ debtor-pay order directed to debtor, $_____ per month; and/or

☐ employer-pay order directed to:

☐ Debtor 1 Name's Employer	☐ Debtor 2 Name's Employer
Payment order to this employer $ per month	Payment order to this employer $ per month
[Name of Employer] Attn Payroll [Address] [City, State, Zip]	[Name of Employer] Attn Payroll [Address] [City, State, Zip]

3.4 Additional or varying payments.

☐ **None.** [*If "None" is checked, the rest of Section 3.4 need not be completed or reproduced.*]

☐ Debtor will make additional or varying payments to the Trustee as specified below. For additional payments, describe the source, estimated amount, and date of each anticipated payment.

Section 4: ADMINISTRATIVE FEES

4.1 The Trustee will be paid up to 10% on all funds received.

4.2 Debtor's attorney fees will be paid through the plan as stated below, subject to modification by the Trustee of the time period over which fees will be paid as necessary to make the plan feasible. Counsel for debtor reserves the right to submit additional fee applications, but payment is subject to Court approval. Debtor consents to such increases in plan payments as may be necessary to pay any approved additional fees. Allowed post-petition attorney fees not paid through the Trustee will not be discharged and shall be paid directly by debtor to attorney post-discharge.

Fees for the case:	$
Case closing fees:	$
Total case fees allowed absent further application:	$ 0.00
Total fees paid to date:	$
Balance of fees to be paid through the plan:	$ 0.00
Number of months over which fees shall be paid:	

Section 5: FILING FEE

☐ The filing fee has been paid OR ☐ $0.00 has been paid and $313.00 will be paid by the Trustee.

Section 6: TAX RETURNS (for the preceding 4 years)

☐ have been filed OR ☐ have not been filed. Debtor has not filed returns for the following years:

Section 7: DOMESTIC SUPPORT OBLIGATIONS

"Domestic Support Obligation" (DSO) is defined by § 101(14A) and encompasses most child support, maintenance, and alimony obligations.

☐ **None.** [*If "None" is checked, the rest of Section 7 need not be completed or reproduced.*]

☐ Debtor owes a DSO. (Complete entire section if DSO is owed.)

7.1 Type of DSO owed: The obligation consists of payments that are:

☐ ongoing (post-petition DSO payments)

☐ arrearage.

7.2 Summary: Below is a summary of all Domestic Support Obligations. For DSO payments being made through the plan, the Trustee will pay the amount set out in a proof of claim unless the Court sustains an objection to the claim.

Name of Recipient / Payee	Pre-petition arrears (if any)
	$
	$

7.3 Ongoing post-petition payments: If debtor has an existing order under state law to pay an ongoing DSO, that order will continue and the payment will be made directly to the payee in accordance with that order.

7.4 Pre-petition DSO Arrearage: Any pre-petition amount due on a DSO will be:

☐ paid in full through the plan by the Trustee, OR

☐ paid directly pursuant to an existing order, OR

☐ not paid in full (and not discharged) because debtor is paying all projected disposable income for a 5-year period through the plan and the arrearage has been assigned to a governmental unit as defined by § 507(a)(1)(B). Absent inclusion of a non-standard provision directing otherwise, a § 507(a)(1)(B) arrearage will be administered through the Trustee and will receive available funds after administrative, secured, other priority, and Section 17 claims being paid through the Trustee are paid.

7.5 DSOs and Discharge: Debtor must pay DSO arrearages and all ongoing DSO payments in accordance with this plan to be eligible for a discharge.

Section 8: PRIORITY CLAIMS OTHER THAN DOMESTIC SUPPORT OBLIGATIONS

8.1 General Provision: Debtor will pay all allowed non-DSO priority claims under § 507 without post-petition interest. The Trustee will pay the amount set out in the creditor's proof of claim unless the Court sustains an objection to the claim. If a priority claim creditor also claims a secured debt, the secured portion will be treated as a secured claim together with interest pursuant to D. Kan. LBR 3015(b).1(h), except for secured tax claims, which will be paid interest at the applicable non-bankruptcy rate pursuant to § 511.

8.2 Amounts Owed: Debtor estimates that these non-DSO priority creditors are owed the amounts indicated.

Creditor	Estimated Amount Owed
	$
	$

8.3 Discharge: Payment through the Trustee of the principal (and pre-petition interest, if applicable) due on allowed pre-petition priority claims will result in a full and total discharge of all debtor's obligations for those claims to the extent such debts are not otherwise excepted from discharge pursuant to the Bankruptcy Code.

Section 9: RELIEF FROM STAY REGARDING PROPERTY TO BE SURRENDERED

Upon plan confirmation, any stays under § 362(a) and § 1301(a) shall be terminated as to any surrendered property. This provision does not prevent the earlier termination of the stay by operation of law or by Court order. Nothing contained in this section operates to permit *in personam* relief against debtor or to abrogate debtor's rights and remedies under non-bankruptcy law. The Trustee shall not make distributions to any secured claimant in this class, including any assignees and successors in interest of the claimant.

Property to be Surrendered	Creditor with Secured Claim

Section 10: TREATMENT OF CLAIMS SECURED BY REAL ESTATE

☐ **None.** [*If "None" is checked, the rest of Section 10 need not be completed or reproduced.*]

10.1 Retention and release. Any secured creditor whose debt is secured by real property will retain its lien pursuant to § 1325(a)(5) and shall be required to release the lien at the time designated by § 1325(a)(5); provided, however, that entry of the discharge shall not release a lien that secures a claim being treated under § 1322(b)(5).

10.2 Authorization to Release Information to the Trustee. The debtor authorizes any and all lienholder(s) on real property of the bankruptcy estate to release information to the standing Trustee in this bankruptcy filing. The information to be released includes, but is not limited to, the amount of the post-petition monthly installment, the annual interest rate and its type, the loan balance, escrow accounts, amount of the contractual late charge, and

the mailing address for payments. This information will only be used by the Trustee and the Trustee's staff in the administration of the bankruptcy estate and may be included in motions before the Court.

10.3 Debtor's Principal Residence is: Address

10.4 Maintenance of payments and cure of default, if any. [*Check one*:]

☐ **None.** [*If "None" is checked, the rest of Section 10.4 need not be completed or reproduced.*]

☐ The current contractual installment payments on the secured claims listed below will be maintained, plus any changes required by the applicable contract that are noticed in conformity with applicable rules. These payments will be disbursed either by the Trustee or directly by debtor, as specified below. Any existing arrearage on a listed claim will be paid in full without post-petition interest through disbursements by the Trustee on a pro rata basis. The amounts listed on a filed and allowed proof of claim control over any contrary amounts listed below as to the current installment payment and arrearage. If a mortgage note is in default on debtor's Principal Residence, post-petition payments shall be made through the Trustee in accordance with D. Kan. LBR 3015(b).2, which is incorporated herein. To the extent any provision of this plan conflicts with LBR 3015(b).2, the provisions of LBR 3015(b).2 shall control as to the Principal Residence.

Creditor Name (and Lien Priority)	Street Address of Real Estate	Post-petition Payment	Disbursed by		Estimated Arrearage
			Trustee	Debtor	
		$	☐	☐	$
		$	☐	☐	$

10.5 Real estate claims subject to § 506 valuation (cramdown) [*Check one.*]

☐ **None.** [*If "None" is checked, the rest of Section 10.5 need not be completed or reproduced.*]

☐ For each listed claim, the amount of the secured claim will be paid interest pursuant to D. Kan. LBR 3015(b).1(h), except secured tax claims, which will be paid interest at the applicable non-bankruptcy rate pursuant to § 511. The portion of any allowed claim that exceeds the amount of the secured claim will be treated as an unsecured claim. For each nongovernmental secured claim listed below, the amount of the secured claim is set out in the column headed Collateral Value, which controls over any contrary amount listed in a proof of claim. For secured claims of governmental units, the amount of a secured claim set out in an allowed proof of claim controls over any contrary amount listed below. "EMA," referenced below, means "estimated monthly amount." **Valuation requires service of the plan in accordance with Federal Rule of Bankruptcy Procedure 7004.**

Creditor Name (and Lien Priority)	Street Address of Real Estate	Claim Amount	Collateral Value	Minimum EMA
		$	$	$
		$	$	$

10.6 Real estate claims to be paid in full during the life of the plan (including property tax claims)

☐ **None.** [*If "None" is checked, the rest of Section 10.6 need not be completed or reproduced.*]

☐ For each listed claim to be paid by the Trustee, the amount of the secured claim will be paid interest pursuant to D. Kan. LBR 3015(b).1(h), except for secured tax claims, which will be paid interest at the applicable non-bankruptcy rate pursuant to § 511. If debtor proposes to pay the real estate creditor on a pro rata basis with other secured claims, rather than the fixed monthly amount listed below, such provision must be included in the Non-Standard Provisions (see Section 18). Post-petition property tax claims shall be paid directly by debtor.

Creditor Name (and Lien Priority)	Street Address of Real Estate	Principal Balance	Monthly Payment	Disbursed by	
				Trustee	Debtor
		$	$	☐	☐
		$	$	☐	☐

10.7 Wholly unsecured real estate liens (stripoff)

☐ **None.** [*If "None" is checked, the rest of Section 10.7 need not be completed or reproduced.*]

☐ The following claims shall be treated as unsecured because there is no equity in the property to secure the claims. These claims are:

Creditor Name (and Lien Priority)	Street Address of Real Estate	Claim Amount	Collateral Value	Senior Lien Amount
		$	$	$
		$	$	$

Section 11: DEBTS SECURED BY PERSONAL PROPERTY

☐ **None.** [*If "None" is checked, the rest of Section 11 need not be completed or reproduced.*]

11.1 Lien retention and release

Any secured creditor whose debt is secured by personal property will retain its lien pursuant to § 1325(a)(5) and shall be required to release the lien at the time designated by § 1325(a)(5), including "910 car" loan creditors and "one-year loan" creditors, as defined by the paragraph following § 1325(a)(9).

11.2 Monthly payments

"EMA," referenced below, means "estimated monthly amount." **Valuation requires service of the plan in accordance with Federal Rule of Bankruptcy Procedure 7004.** Debtor proposes to pay personal property secured creditors the minimum EMA listed below from the funds available to pay those claims, after the deduction of Trustee fees. If the Trustee has sufficient funds, the Trustee may pay more than the minimum EMA. If the Trustee has insufficient funds to pay the minimum EMA, the Trustee may adjust the payment so long as the claim will be paid before plan completion. Otherwise, the monthly payments specified below are minimum amounts, and the actual amount may vary, depending on the amount of the allowed claim.

11.3 Interest

For each listed claim, the amount of the secured claim will be paid interest pursuant to D. Kan. LBR 3015(b).1(h), except for secured tax claims, which will be paid interest at the applicable non-bankruptcy rate pursuant to § 511. The interest rate specified in the plan is binding and supersedes the terms stated in a proof of claim.

11.4 Pre-Confirmation Payments

If debtor proposes to make pre-confirmation payments, the amount stated below will be paid by the Trustee each month as if the plan were confirmed and will continue to be paid upon confirmation. Any pre-confirmation payments paid by the Trustee will be credited against the allowed secured claim as though the plan had been confirmed. **To receive any pre-confirmation payment, a creditor must file a claim that is allowed.**

11.5 General Personal Property Secured Claims

Any non-governmental secured claim listed below (other than "910 car" loan creditors and "one-year loan" creditors) will be paid the value of the collateral listed below or the amount of the claim, **whichever is less**, unless otherwise specified in "Non-Standard Provisions" (see Section 18). The value of collateral listed below controls over a contrary amount set out in the proof of claim for a non-governmental secured claim. For secured claims of governmental units, the amount of a secured claim set out in an allowed proof of claim controls over a contrary amount listed below. The portion of any allowed claim that exceeds the amount of the secured claim will be treated as an unsecured claim.

Creditor	Collateral	Debt	Value	Minimum EMA
		$	$	$
		$	$	$

11.6 910 Car Loan Creditors: Each "910 car loan" creditor listed below will be paid the amount of the debt owed, unless the creditor agrees to be paid less than the full amount.

Creditor	Collateral	Debt	Minimum EMA
		$	$
		$	$

11.7 One-Year Loan Creditors: Each "one-year loan" creditor listed below will be paid the amount of the debt owed, unless the creditor agrees to be paid less than the full amount.

Creditor	Collateral	Debt	Minimum EMA
		$	$
		$	$

Section 12: STUDENT LOAN OBLIGATIONS

Student loan debt that is not dischargeable under §523(a)(8) remains not dischargeable under the Bankruptcy Code, absent the debtor prevailing against the creditor in an adversary proceeding. If the student loan is not discharged, interest will continue to accrue on the prepetition principal. Any payments disbursed by the Trustee through the plan will be applied by the creditor to the prepetition claim.

Section 13: EXECUTORY CONTRACTS AND UNEXPIRED LEASES

Debtor assumes the executory contracts and unexpired leases listed below and will pay directly to the respective creditor any pre-petition arrearage and post-petition payments. All other executory contracts and unexpired leases are rejected.

Creditor	Description of Contract or Lease

Section 14: GENERAL UNSECURED CREDITORS

General unsecured claims will be paid after all secured claims and all other unsecured claims, including administrative, priority, and separate class claims, not less than the greater of: the amount those creditors would receive if the estate of debtor were liquidated under chapter 7 or the amount the claims are entitled to under Form 122-C.

Section 15: BEST INTEREST OF CREDITORS TEST

Debtor represents that the property to be distributed under the plan would have the liquidation value set forth below if it were administered in a chapter 7 case.

Total liquidation value of case:	$
Less estimated costs and chapter 7 fees:	$
Equals net distribution to priority and general unsecured claims:	$ 0.00

Explanation of calculation and list of property:

Section 16: VESTING

All property of the estate will vest in debtor: ☐ at discharge or dismissal of the case, OR
☐ at confirmation.

[*If neither box is checked, it will be deemed that vesting will occur at discharge or dismissal of the case.*]

Section 17: SEPARATE CLASS CREDITORS

☐ **None.** [*If neither box is checked, it will be deemed that no separate class creditors exist. If there are no separate class creditors, the rest of Section 17 need not be completed or reproduced.*] OR

☐ The creditors listed below are separate class creditors:

Creditor	Debt	Disbursed by:	
	$	☐ Trustee	☐ Debtor
	$	☐ Trustee	☐ Debtor

17.1 Explanation for separate class creditor treatment:

Section 18: NON-STANDARD PROVISIONS

Any Non-Standard Provision placed elsewhere in the plan is void. To the extent a Non-Standard Provision conflicts with any other plan provision, the Non-Standard Provision controls.

☐ **This plan has no Non-Standard Provisions.**

☐ **This plan has Non-Standard Provisions as follows:**

Section Number	Nonstandard Provision

SIGNATURES (debtor signatures optional if plan signed by counsel)

s/Debtor 1 Name
Debtor 1 Name, Dated: 2/27/2024

s/Debtor 2 Name
Debtor 2 Name, Dated: 2/27/2024

Respectfully submitted:

s/Attorney Name
Attorney Name
KS Supreme Ct. #
Firm Name
Address
City, State, Zip
Phone:
Fax:
Email:
Attorney for Debtor

By filing this document, debtor, if not represented by an attorney, or the attorney for debtor, certifies that the wording and order of the provisions in this Chapter 13 plan are identical to those contained in the District of Kansas Local Form plan, other than any provision included in Section 18, “Non-Standard Provisions.” rev. 04.1.2024